

00000000 Központosított beszedési számla IBAN: HU83 1003 2000 0104 0425 0000 0000) javára kell megfizetni.

5. A Hatóság felhívja Ügyfelet, hogy a jogsértés megszüntetése érdekében haladéktalanul intézkedjen a szükséges intézkedések megtételéről, és a jogsértés megszüntetéséről legkésőbb 30 napon belül tájékoztassa a Hatóságot.

6. A Hatóság tájékoztatja Ügyfelet, hogy a határozat ellen a kézhezvételtől számított 30 napon belül bírósági felülvizsgálat iránti kérelmet nyújthat be.

7. A határozatot a Hatóság a jogszabályi kötelezettségeinek megfelelően közzéteszi, figyelemmel a személyes adatok védelmére.

Budapest, 2023. szeptember 14.

Nemzeti Adatvédelmi és Információszabadság Hatóság

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00000000 must be paid to the Centralized Collection Account. In case of non-payment of the fine and the late fee, the Authority will order the enforcement of the decision, the fine, and the late fee. The collection of the fine and the late fee will be carried out by the National Tax and Customs Administration as taxes.

During the data protection authority procedure, a total of HUF 2,127, that is, two thousand one hundred twenty-seven forints, was incurred as procedural costs, which will be borne by the Authority.

There is no place for administrative remedy against this decision, but it can be challenged in an administrative lawsuit with a statement of claim addressed to the Metropolitan Court within 30 days from the notification. The statement of claim must be submitted electronically to the Authority, which will forward it to the court along with its documents. For those who do not benefit from full personal exemption from fees, the administrative lawsuit fee is HUF 30,000, that is, thirty thousand forints, which falls under the subject matter fee exemption. Legal representation is mandatory in the proceedings before the Metropolitan Court.

REASONING

I. Preliminary case: NAIH-3266/2022. (NAIH-215/2021. and NAIH/2020/5714) investigation procedure

(1) A report was received by the Authority regarding the activities of the Mayor of Kerepes City (hereinafter: City) (hereinafter: Mayor) that on June 16, 2020, in a public post on the Facebook social media platform – with a comment attached – a picture was published of a resident of Budapest's XIII district placing waste in a public area of the City, along with the personal vehicle used by them, stating that a police report had also been filed in the matter. The report notes that the Mayor's Facebook post was shared by several users – including a profile named "Szervusz" – on the social media platform. According to the report, not all of the "16-20 cameras" placed in the City area have warnings posted about the recording of images, and in some cases, the warnings or cameras are obscured by vegetation, so the affected individuals may not necessarily be aware of the recording. Furthermore, the reporter states that the City's municipal website does not indicate where the surveillance cameras have been installed.

(2) The Authority initiated an investigation under NAIH/2020/5714 based on Section 38 (3) a) of the

Infotv. regarding the legality of the data processing of the surveillance system installed by the municipality in the public areas of Kerepes City, which was closed under NAIH-3266/2022. To clarify the facts, the Authority made several inquiries to the Client as the data controller based on Section 54 (1) a) and c) of the Infotv., to which the newly appointed notary as of December 1, 2020, responded.

(3) According to the response, the cameras of the public area surveillance system installed in the administrative area of the City were placed based on the decision of the City Council – Resolution 118/2015. (V. 26.). The operation of the surveillance system is regulated by the municipal decree 19/2016. (IX. 30.) and the Data Protection, Operational, and Data Security Regulations of the Kerepes Municipal Surveillance System (hereinafter: Regulations). The Client denied that there are no warning signs regarding the camera recordings in all areas around the public cameras, or that they are obscured by vegetation; this was also supported by photographic evidence. In its response, it was noted that the City's website indicated where the cameras are installed; this was verifiable during the review of the City's website. According to the Client's response, the recordings of the surveillance system are stored on a closed network, while recordings requiring action are stored on a separate drive; access to the closed network is restricted to public area inspectors, while access to the separately stored "action-required" recordings is granted to public area inspectors, the technical department head, the notary, and the Mayor. According to the statement, the Mayor has access to the recording for the purpose of filing a report due to established local practices, for the duration of the recording used for the report.

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through a designated, authorized accessible drive; the legal basis for all of this was identified as the City's legitimate interest, the action against unlawful damage, and the reporting of crimes. Regarding the recording under investigation, the Client stated that the original intention was for the Mayor to file a report, which is why they became aware of the recording, and furthermore, they published the blurred recording, which does not violate personal rights, for the protection of the City's legitimate interests and for preventive purposes. In addition to the Mayor, the public area inspectors used the recording to file a police report. According to the Client's statement, the Mayor learned about the affected person's residence "by hearsay."

The Client noted that the extraction of the recording under investigation was not logged, despite the fact that the Regulations contain this obligation. Since December 1, 2020, the logging of recordings has been carried out in accordance with the Regulations. Section 14.4 of the Regulations prescribes the manual logging of extractions. At the same time, according to Section 14.3, re-checking and extraction is possible with a personal code, which is logged by the server in its memory upon entry. According to the clerk, the image published on the facebook.com social media site was edited compared to the original recording, being blurred and of low resolution, thus – in their opinion – it is not suitable for identifying the affected person. According to the Client's response, the acting public area inspectors determined part of the characters of the license plate of the vehicle appearing in the recording based on the recording, while the other blurred characters were identified through "trial and error" from the integrated portal-based querying system, and they filed a report with this data. According to the Client's response, the image under investigation is no longer available on the facebook.com website, as it has since been deleted.

(4) According to the Client's information, from March 1, 2021, the Mayor's office entrusted a legal expert with the tasks of a data protection officer, with whose involvement a new regulation was

developed concerning the operation of surveillance cameras. Furthermore, they do not have information regarding who the administrator of the "Szervusz" facebook page is; in their opinion, the page cannot be linked to an employee of the mayor's office.

The Authority, in its letter NAIH-215-4/2021 dated May 4, 2021, called upon the Client to send this new regulation, paying special attention – among other things – to the logging procedure and the establishment of data security measures.

(5) The Client sent the Authority a new Data Protection, Data Management, and Data Security Regulation (hereinafter: New Regulation) developed in light of the Authority's investigation, but not yet enacted.

The Authority reviewed the New Regulation and, in accordance with Section 56 of the Infotv., called upon the Client to take further measures, corrections, or – in case of disagreement – to inform the Authority of their position. For this reason, in the course of the investigation, on February 23, 2022, the Authority issued a notice to the Client under number NAIH-3266-1/2022, calling upon the Client to correctly determine the identity of the data controller in the New Regulation, to clarify contradictory provisions related to online surveillance, and to pay attention to the requirement that unauthorized persons should not be able to access the data, as well as to ensure that personal data is not processed in the absence of a lawful purpose. The Client – although in their response dated April 12, 2022, under number 2, they referred to taking measures – did not send a revised regulation in accordance with the Authority's request, did not comply with its provisions, thus – according to the available data – a continued unlawful state existed regarding the operation of the public area camera system and the use of its recordings.

As of November 6, 2023, the New Regulation is listed on the City's website – <https://www.kerepes.hu/szabalyzatok-0> – in its state as of November 10, 2021, although the clerk of the Client made a statement regarding its amendment on April 12, 2022 – without delay.

(6) Subsequently, the Authority learned from press reports that on August 18, 2022, the Mayor posted on the facebook.com social media site a recording captured by a surveillance camera on August 15, 2022 –

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A video recording was published of a person who engaged in self-gratification at the HÉV stop in Szilasliget, and due to this act, the police previously initiated criminal proceedings.
(<https://24.hu/belfold/2022/08/18/kerepes-hev-megallo-maszturbalo-ferfi-video-polgarmester/>;
<https://hirtv.hu/ahirtvkekhirei/elfogta-a-rendorseg-a-kerepesi-recskafantomot-2552182>;
<https://www.szeretlekmagyarorszag.hu/kekhirek/letelt-az-ultimatum-nyilvanossagra-hoztak-a-szilasligetnel-maszturbalo-ferfi-videojat/>)

Before the publication of this video recording, the Mayor attempted to persuade the perpetrator to voluntarily report to the Police, otherwise, he would publish the recording, according to a call posted on facebook.com. In this call, he literally stated the following:

"Dear buddy, if you're sweetening the honey under the surveillance camera, you risk the following: if you do not report to the police within two days, the full-HD recording of your handiwork will be posted online."

(<https://mandiner.hu/video/2022/08/kerepes-hev-maszturbalas-video-ferfi-jelentkezes-full-hd-pergeti-a-mezet>; <https://telex.hu/belfold/2022/08/17/maszturbalas-onkielegites-kerepes-hev-polgarmester>)

(7) Based on the data obtained during the investigation, it was established that according to Section 4 (1) of the Municipal Regulation No. 19/2016 (IX. 30.) of the Kerepes City Municipality regarding the public area surveillance system, the municipality entrusted the management of the public area surveillance system to the Client.

(8) The fact that the Mayor has access to the recordings from the surveillance camera system supported the Authority's finding recorded in paragraph (5), as it presumed an ongoing legal violation concerning the management of the recordings from the public area cameras. In light of all this, the Authority concluded the investigation regarding the legality of the Client's data management through the public area surveillance system and initiated the present data protection authority procedure.

II. The Data Protection Authority Procedure

(9) During the data protection authority procedure, on September 14, 2022, the Authority conducted an inspection at the Client's headquarters located at 2144 Kerepes, Vörösmarty utca 2, without prior notification for the sake of the effectiveness of the procedural act.

The representatives of the Authority contacted the Client's clerk (hereinafter: Clerk), who was informed about the initiation of the data protection authority procedure and the fact of the inspection without prior notification.

The representatives of the Authority continued the inspection by viewing the office of the public area supervision after contacting the Clerk. The members of the Authority took photographs of the building housing the public area supervision office.

The public area supervisor present here first showed the server belonging to the camera system and informed the representatives of the Authority about the personnel of the public area supervision.

The members of the Authority noted that the building serving as the location for the camera system and the server is protected by a lockable door and that the electronic security system is turned off. The room contains the monitoring station and its monitors. A room opening from this room functions as an office, and behind this room is the server.

The representatives of the Authority established that the device for recording camera images is a HIKVISION Network Video Recorder (hereinafter: NVR), type: DS-9332NI-I8, unique identifier: 647195880, which was also documented with photographs.

Subsequently, [...] demonstrated the operation of the camera system to the representatives of the Authority. The public area supervisor logged in with a symbol code as an admin user; in response to a question, he stated that there are no other user accounts for the camera system. Following this, the individual live images began to appear on the monitor.

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camera images. A 32-channel recorder displayed images from 14 cameras. The members of the Authority took photographs of all this. Out of the 14 operational camera images, 5 were broadcasting images from the HÉV cameras.

The IT representatives of the Authority established that the system provides remote access (Quick Connect), and that the 5589 GB storage was fully utilized, with such a large volume of recordings saved locally, and that previously saved files are continuously overwritten. The last available recording was made on August 28, 2022. The camera system was set up to broadcast images 24 hours a day. A

member of the Authority documented the workstation with a photograph.

[...] the public space inspector provided information regarding the camera system, during which he explained how the police officers who previously participated in the surveillance accessed the camera system. In response to a question, he stated that he receives instructions regarding his work from the Clerk.

The Authority took photographs of the document that records the saving and transmission of the camera recordings.

The IT representatives of the Authority extracted the configuration settings from the NVR, as well as the log files related to data processing activities concerning the images (saving, reviewing, access).

The public space inspector also provided information that no record is kept of entries into the room, and he stated that he and the assistant inspector have the key; he cannot provide substantial information about the existence of any additional keys.

Regarding access to the camera system, the public space inspector informed the representatives of the Authority that he, the assistant inspector, and the previous public space inspector know the access code. He further stated that he does not conduct continuous live image monitoring and performs his duties during office hours.

(10)

The Authority conducted the hearing of [...] the public space inspector as a witness during the inspection:

The witness stated that [...] the assistant inspector, who had previously worked there, does not have access to the camera recordings. [...] the public space inspector recorded that he has no deputy, and he is the one who can view the camera recordings; if the police wish to seize a recording, they will contact him. If urgent action is needed regarding the camera recordings and he is not working, the Clerk could take action. He stated that he is organizationally part of the Technical Department, but in practice, he receives daily tasks from the Clerk and is under his direct supervision.

He stated that he cannot list how many public space cameras are installed in the City; there may be about 16-18; to his knowledge, this includes the HÉV cameras, totaling about 5 cameras. He mentioned that he can also view the images from these cameras, together with the City cameras on the same monitor. He stated that in August 2022, regarding a case that was also reported in the press – a man was performing self-gratification at the HÉV stop – the police seized a camera recording. The acting police officers saved the recording onto a USB drive; this recording was not saved by [...] the public space inspector, nor was it handed over to anyone else. To his knowledge, the Mayor did not visit the Public Space Inspectorate office; he further stated that he did not hand over this recording to the Mayor, nor did the Mayor request it from him. He mentioned that he heard that the Mayor posted the recording on Facebook, which he also reported to the Clerk. He could not comment on how the Mayor obtained the recording.

Regarding the case, he recalled that a citizen report was received on the public space inspectorate's service phone, stating that a man was performing self-gratification at the HÉV stop. The call was answered not by him, but by the assistant inspector. According to his memories, events accelerated that day; they went out to the scene and tried to track down the perpetrator; he returned to the office during the day and reviewed the recordings.

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The camera footage recorded by the HÉV camera was indicated by the police to be seized during the day, thus the footage was saved. It was stated that the police did not show up that day, only the next afternoon, and the footage was copied onto a USB drive, which was handed over directly to the police against a seizure order. It was added that the USB drive was provided by the Client according to protocol.

It was stated that the USB drive, onto which the footage was copied, was in the server machine until the police arrived, and it was not removed from there. The Clerk did not give any instructions regarding the case; according to the statement, he learned about it from Facebook. When asked, it was stated that access to the Public Area Supervision office is only possible with a key, which is with him when he is not in the office. [...] The assistant supervisor also has a key, but he was no longer in the office that day. When asked, it was stated that he likely received special data protection training and became familiar with the data protection policy and the information security policy as soon as he started working for the Client. [...] The public area supervisor recorded in response to a question that he never received any instructions from the Client to save footage. He stated in response to a question that he is not familiar with the Client's practice of filing reports based on public area camera footage.

It was stated that he has access to the Police's misdemeanor registry and the personal data and address registry; however, all of this is limited, and he has certain access to the road traffic registry. Within the framework of this authorization, he can view the name of the vehicle owner based on the vehicle's registration number and the technical data, and if the owner provided it, the person's phone number as well. He has not used these systems in practice yet, as there has been no need for it. When asked, it was stated that besides him and [...] the assistant supervisor, no other person can be in the Public Area Supervision office without their supervision. If someone arrives for an official matter, they are allowed in by turning off the monitor used for viewing public area camera footage. When asked, it was stated that, to his knowledge, the system stores the footage for 30 days, after which it is deleted as it gets overwritten. In response to an interjected question, it was stated that he was not previously familiar with the admin password belonging to the surveillance system; nor that there would be different authorization levels set for the camera system; only he is authorized to use the surveillance camera system; the assistant supervisor can only be present. In practice, live monitoring does not occur. When asked, it was stated that he monitors both the city cameras and the HÉV cameras and is not aware of any restrictions regarding what operations can be performed with the HÉV cameras. He stated that he knows there is an agreement between the city and MÁV-HÉV Zrt. regarding the management of the footage.

When asked, it was stated that he is not aware of any other places where public area camera footage can be accessed; nor does he know who manages the Mayor's Facebook page. He has never received any instructions to perform any queries from public registries. According to his statement, he was not previously aware that one of the HÉV cameras also records sound.

The witness presented the PMRFK Gödöllő Police Department's decision number 13040/2014/2022. regarding the order for the seizure of footage made on August 15, 2022, of which a photograph was taken by the acting member of the Authority.

(11)

The Authority established that no one was able to present the authorization registry and the data controller registry during the inspection, and based on the statements, no one was aware of them.

(12)

The Authority conducted the Clerk's statement within the framework of the inspection:

The Clerk was unable to state which is the applicable regulation regarding the camera system operated by the Client. Regarding the management of the Client's website, it was stated,

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that the technical tasks are performed by administrative staff, [...] an employee of the Municipality and [...] an employee of the Client. The Clerk was not aware that – at the time of the inspection – two different versions of the camera regulations were published on the City's website. Regarding the training prior to the employment of the public space inspector, he stated that he is not familiar with the practice, they check for general qualifications, and whether they have police permission. In response to a question, he stated that no separate data protection training is held for the employees, they may provide written information to them, but he is not familiar with its content. As the Client's data protection officer, he designated [...] from the Hátadat expert office, but he could not comment on how long the data protection officer has been performing his duties; nor could he comment on whether the data protection officer's notification to the Authority has taken place. The Clerk could not comment on how long the recordings made by the public space camera system are retained and was not aware of the procedure for the seizure of camera recordings. He could not comment on whether the Mayor is entitled to access the recordings of the public space camera system.

The Clerk stated in response to a question that he has been performing his duties since August 15, 2022.

The Clerk consulted with the data protection officer by phone, but the data protection officer was in the countryside and could not attend the inspection in person.

The Clerk was not aware of who the data controller is for the "Szervusz" page on the Facebook community site and the mayor's Facebook profile. He could not comment on whether the Client or its employees have editorial responsibilities regarding the content upload to the mayor's Facebook profile. The Clerk was not aware if there had been any exercise of rights by the data subjects; regarding the public space camera system, he noted that if someone were to request a copy of the recordings made by the cameras, he would refuse it, as it would only be released to authorities. He could not comment on whether there is a shared drive or USB stick in the Client's system where the camera recordings have been saved.

In response to a question, the Clerk stated that the Client proposed to MÁV-HÉV Zrt. that the issue of handling the images recorded by the MÁV-HÉV Zrt. cameras be discussed at an expert level, meaning that the Client's data protection officer should establish the appropriate frameworks with the experts of MÁV-HÉV Zrt. In response to the suggestion that MÁV-HÉV Zrt. claims that a recording was extracted in violation of the Cooperation Agreement between the Client and MÁV-HÉV Zrt., the Clerk stated that this is only MÁV-HÉV Zrt.'s claim and he does not know who could have extracted the recording; furthermore, he has no official knowledge that the Client made a copy of the recording in question, having learned about the case from the national media.

In response to a question, the Clerk stated that he is not aware of whether any report was received by the Client indicating that anyone recognized the perpetrator based on the published images.

In response to a question, the Clerk stated that [...] as an employee of the Municipality of Kerepes City (hereinafter: Municipality) and assistant to the Mayor provides assistance on IT issues to the Mayor, but he was on sick leave at the time of the inspection; he also noted that the Mayor has IT knowledge.

The Clerk was not aware that certain camera recordings – according to the previous Clerk's statement – had been saved to a drive that was accessible to the Mayor and the head of the Technical Department. He could not comment on who decides on the placement of warning signs in public spaces regarding the camera system.

In light of the information obtained, the Authority's staff requested the Clerk during the inspection to inform the Mayor that the Authority wishes to hear him as a witness during the inspection.

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(14)

The Authority [...] (an employee of the Client's Technical Department) was heard as a witness during the inspection:

The witness stated that they had never actually provided any activities related to public space inspectors or the public space camera system from the Technical and Investment Department, nor did the department head have any tasks related to the authorization of leaves or the performance of duties by public space inspectors.

According to the witness, the public space inspector provided access to the data to the former department head, but there was never a need for access to the camera recordings; the profile of the former department head was also deleted, and the network drive permissions were restricted, accessible only to the employees of the organizational unit.

In response to a question, the witness stated that the department head never had management authority over the public space inspectors; until 2019, the current notary managed the public space inspectors, and since then, the Mayor has been in charge of them. The witness mentioned that the Technical and Investment Department does not have IT tasks and only has access to Takarnet.

(15)

During the inspection, the Notary handed over the following documents to the Authority's staff upon request:

- Kerepes City Municipality and Client's data protection and data management regulations for the protection of personal data of natural persons (effective from: 2019.04.09)
- Regulation for the operation of electronic surveillance systems (camera system) (effective from: 2019.03.26)
- Contract for the performance of data protection officer (DPO) duties (2021.03.09)
- Contract for the performance of duties related to the security of electronic information systems (2015.01.31)
- Flat-rate service contract between Flash-Com Computer Ltd. and Kerepes City Municipality (2019.12.20)

(16)

The Authority's staff [...] conducted a witness hearing of the Client's person responsible for the security of electronic information systems (hereinafter: IBF) during the inspection:

The IBF was not aware that the Client operates a surveillance camera system, thus concluded during the hearing that it may be managed by the Municipality. They stated that as an IBF, they conducted a detailed survey of the Client's systems on February 9, 2015; they also performed a risk analysis of the Client's office systems and prepared an action plan and regulations to establish the protective measures required by Act L of 2013 on the electronic information security of state and municipal bodies (hereinafter: lbtv.), as well as a hardware and software inventory, which was previously handed over to the notary, who made the necessary notifications to the competent authority. An information security regulation and a business continuity plan were prepared. They have trained users on several

occasions in a documented manner regarding information security awareness; they started organizing online information security awareness training and informed the notary about it in the spring of 2022, but the training had not taken place by the time of their hearing.

They cooperate with the designated data protection officer to ensure the Client's data security compliance, but they have not yet received a request from the Client regarding this new data protection officer.

In response to a question, they stated that the detailed survey of the information systems was last conducted in 2015; at that time, there was no camera system, and they were not involved in the process of its establishment, even though it was the

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According to the lbtv., it would be the Client's obligation; thus, it did not audit the electronic information system related to the camera data management. It was not convinced that the public surveillance camera system would connect to any of the Client's systems, did not see the setup of the camera system, does not have access to the network, and is not aware of whether it is integrated with the Client's office systems; in its opinion, the system administrator would know more about this.

Regarding the permissions, it stated that a situational assessment took place in 2015, which did not cover a detailed assessment of permissions; the system administrator is responsible for keeping it up to date, and it did not recall whether any deficiencies were identified.

Concerning the up-to-date software inventory, it stated that it is the responsibility of the system administrator to maintain and keep it current; in 2015, one was compiled by him.

It mentioned that the connection of external storage devices, such as its own USB drive, to the office machines is not restricted, but the expectations of the Hungarian State Treasury require security measures belonging to security class 4, thus an action plan was compiled regarding those. It was not aware of which company built the public surveillance camera system.

(17)

Following the hearing of the public area inspector as a witness, during the inspection at the public area inspector's office, the Authority's IT specialists extracted recordings from three cameras of the camera system, during which they observed that the HÉV cameras continuously record sound as well.

During the inspection, representatives of the company providing system administration services – Flash-Com Számítástechnikai Kft. (hereinafter: FLASH-COM Kft.) – arrived at the Client's headquarters. At the request of the Authority, an employee of FLASH-COM Kft. demonstrated the server room located on the ground floor of the Client's headquarters, of which the members of the Authority took photographs. The acting members of the Authority – based on visual inspection and the statement of the FLASH-COM Kft. employee – established that the public surveillance camera system does not have any devices or data transmission nodes in this room.

After the representatives of the Authority requested the contract regarding the establishment of the public surveillance camera system from the Clerk, the financial and tax department head of the Client, [...], appeared before the representatives of the Authority and provided copies of five invoices issued by Nemzetközi Testőr Biztonságyszolgálati Kft. for the Municipality of Kerepes (invoices numbered S2211505, S2211186, S2211118, S2211119, S2210856).

During the inspection, the Authority previously requested the Clerk to inform the Mayor that the

Authority wishes to hear him as a witness; in this regard, in response to a later question posed during the inspection, the Clerk stated that he had since received information that the Mayor would not be available to the Authority on the day of the inspection.

(18)

During the inspection, the acting members of the Authority informed the Clerk that they wish to examine the IT equipment in the Mayor's office as an object of inspection and requested to open the office. The Clerk stated that he cannot open the office as he does not have the key; only the Mayor and the assistant on sick leave have it. Therefore, the inspection could not be continued successfully.

(19)

During the inspection, the Authority heard the witness requesting closed data management (Witness 1):

Witness 1, in response to the questions addressed to him, stated that FLASH-COM Kft. provides system administration services to the Client alongside the Kerepes Municipality. The Mayor's computer has network connectivity with Windows A D user management. He stated that, as a rule, they do not log the user's activities; a backup is made of the data stored on the server.

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Regarding the records. On the server, there is a personal virtual drive for each user and a shared drive; full backups are made periodically, and at least daily incremental backups are made of the network drives. Witness 1 is aware that the Mayor uses a Notebook, which also has a local drive, but no backup is made of this; furthermore, there is no setting on the firewall that would notify in case of uploading a file exceeding a certain size.

Witness 1 could not comment on whether the public area camera recordings are saved to a separate network drive, but he could not exclude this possibility either. He stated that during the inspection, there is no opportunity to check whether there are video files on the server, as he does not have access to this. The internal backup of Windows is used, and there is likely a backup regarding the file structure for the past week. The Mayor is theoretically entitled to take his Notebook out of the building, but he cannot state this definitively; furthermore, it is also possible that he has VPN access.

(20)

The Authority's engineer prepared an expert opinion (NAIH-7398-9/2022) based on the observations made during the on-site inspection, in which the Authority established that in the backup history window visible on the Hikvision NVR user interface, the following backups were made from cameras D1, D13, D17, D18, and D19, in addition to the backups made during the inspection:

- D19 2022-08-15 11:02:52
- D19 2022-08-15 11:11:48
- D13 2022-08-15 11:21:20
- D18 2022-08-17 20:47:03
- D13 2022-08-15 11:21:20
- D18 2022-08-17 20:47:03
- D17 2022-08-17 20:47:05
- D1 2022-09-14 07:55:05

A Hikvision DS-9632NI-I8 type NVR video recorder was installed on-site, which recorded images from the City's surveillance cameras and audio from certain cameras. The settings of the camera system

clearly indicated that the system is set to 100% storage utilization, which continuously overwrites the oldest files during recordings, ensuring that there is always enough space for new recordings. As a result, the oldest available recording was dated August 28, 2022. No recordings prior to this date were available.

Reviewing the log files of the security camera system revealed that the earliest entries date back to May 31, 2021, and the most recent entries were recorded on September 14, 2022, which was the day of the on-site inspection.

From the handwritten Camera image backup log inspected on-site, it was revealed that at the request of the Police, recordings from cameras D13 and D19 covering the time interval between 11:00 and 11:30 on August 15, 2022, were backed up; furthermore, on August 24, recordings covering the time period between 21:30 and 22:00 were backed up at the request of the PMRFK Gödöllő Police Department.

However, in the camera log file, there are no entries regarding when, by whom (which user), and from which camera any backups were made during the period between August 8, 2022, and September 2, 2022, as well as between August 8, 2022, and September 5, 2022. The log file appeared to be continuous except for this period; therefore, the Authority conducted a test backup on-site with the admin user, as the public area inspector claimed that everyone uses the admin user access and does not know of any other user.

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The Authority completed the test recording on September 14, 2022, at 9:46:54 AM.

A log entry was immediately made regarding the recording, from which it can be clearly established that a backup of the recording made with the admin user by the local operator, thus not via remote access, from the D1 camera was created between September 14, 2022, 08:45:11 and September 14, 2022, 09:35:17.

There is no log entry regarding the previously listed backups; the Authority became aware of them solely from the handwritten log (20220914_092739.jpg) and the backup history window available on the NVR 4.0 user interface (20220914_103109.jpg, 20220914_103122.jpg).

During the on-site inspection of the 32-channel network video recorder unit of the Municipality of Kerepes, 13 cameras were operational. The city surveillance cameras recorded images only, while the cameras used at the HÉV stops recorded both images and sound. Most of the recordings retrieved by the Authority clearly captured human voices and/or the sound of incoming HÉV trains (e.g., D21_20220914104034.mp4).

(21)

Based on the log file backup performed by the Authority during the on-site inspection, it was established that between May 31, 2021, and September 14, 2022, log files were generated on a total of 34 days.

These are as follows:

- May 31, 2021;
- June 3, 2021;
- June 10, 2021;
- June 11, 2021;
- June 14, 2021;

- June 15, 2021;
- June 23, 2021;
- July 20, 2021;
- July 28, 2021;
- July 31, 2021;
- August 1, 2021;
- August 2, 2021;
- August 6, 2021;
- August 7, 2021;
- August 25, 2021;
- October 18, 2021;
- November 1, 2021;
- November 5, 2021;
- November 11, 2021;
- November 17, 2021;
- January 3, 2022;
- February 4, 2022;
- March 1, 2022;
- March 2, 2022;
- April 5, 2022;
- April 28, 2022;
- July 1, 2022;
- July 6, 2022;
- July 28, 2022;
- August 8, 2022;
- September 2, 2022;
- September 3, 2022;
- September 4, 2022;
- September 5, 2022.

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A log entry regarding the event that occurred on August 15, 2022, and its mitigation was not made.

(22)

The Authority conducted the following inquiries and witness hearings during the data protection authority procedure:

(23)

FLASH-COM Ltd., as the Client's system administrator, responded to the Authority's inquiry NAIH-7398-8/2022 and stated in its response NAIH-7398-10/2022 that there are a limited number of video files on the Kerepesi Municipality and the Client's server, and indicated their access paths. According to its assessment, there was clearly no change (e.g., deletion, relocation, saving) in these files during the period between August 15, 2022, and the Authority's inquiry; however, it could not provide a definitive answer regarding whether there was any "movement" among the video files on the server due to time constraints and resource allocation. According to the response, automatic backups of the data are scheduled every evening/night, using the Windows Server's own backup tool, which performs a full data backup once and then appends the daily increments until the storage space is full;

thereafter, it frees up space from older backups. Concurrently, shadow copies are also created of the volumes every day during lunchtime, serving as an intermediate backup. At the time of the response, the backup was available for the past 125 days. No other backups are made due to a lack of resources. There has never been a separate drive or share for storing video files; however, there was always the possibility to save such files anywhere on the server shares, as there is no file screening set up anywhere on the file server. The Mayor does not use his private folder on the server, and it could not be demonstrated—due to resource constraints—whether any video files were uploaded, modified, or deleted using the Mayor's user credentials in August 2022.

A clear and searchable list of the metadata of the video files located on the servers (filename, size, modification date) was sent by the queried system administrator.

The following general file shares exist on the server: ADO, CSATORNA, EBNYILVANTARTO, ECOSTAT, IGAZGATAS, KABINET, KER-INFO, KOZOS, KOZTERULET, MUNKAUGY, MUSZAK, ONKIRODA, PENZUGY, PROJEKTMENEDZSMENT, SZERZŐDÉS NYILVÁNTARTÁS, TESTULET. These are usually accessed by a specially created group, sometimes supplemented by one user, but within the given share, there are also folders where the rights are restricted. Video files can be located anywhere in these shares; it solely depends on the user what and where they save. The server is accessed using desktop PCs and, in some cases, notebooks. FLASH-COM Ltd. provided a PowerShell and ACL query regarding the folder of mp4 files created in 2022 (shares_video_mp4.txt), which includes who has access based on what rights (pendrive_mappa_acl.txt), as well as who the members of the security group are (kabinet_csoport.txt).

The system administrator has no visibility, access, or connection to the municipal camera system and its separate network; however, he stated that there is neither a logical nor a physical connection between the camera system network and the IT network. In his response, he emphasized that he not only did not participate in the design but also did not receive any professional inquiries regarding it as a system administrator; they were simply confronted with the system's establishment.

(24)

The response from the International Bodyguard Security Service Ltd. (hereinafter: Bodyguard Ltd.) included the following:

Bodyguard Ltd. attached the maintenance service contract concluded between the Municipality and itself on October 31, 2021, stating that they do not perform operational tasks. According to the submitted contract, they will carry out maintenance tasks concerning the thermal camera system between November 1, 2021, and October 31, 2022. It was noted that their service does not extend to other IT activities; they could not provide substantial information regarding this.

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declared who is responsible for the operation. Remote access and new user permissions were not provided to the City Municipality or others. It was recorded that the camera system at the MÁV-HÉV Szilasligeti station was built by MÁV-HÉV Zrt.; the devices were integrated into this system using existing systems, as determined by the officials of MÁV-HÉV Zrt. and the Municipality. It was also stated when maintenance tasks were performed for the Municipality.

(25)

The response from FLASH-COM Kft. to the subsequent inquiry included the following:

It was stated that the following persons – a total of thirteen – had or have access to the folder “C:\SHARES\kabinet\Ecsi\” located in the Client's IT system; and regarding what user operations these persons were authorized to perform. It was stated which persons had or have access to the folders of certain users listed in the “Kabinet” folder – per user folder. It was stated that the video files specified below, located in the Kabinet/Ecsi folder, were available at the time of receipt of the inquiry.

On a data carrier, it was sent the previously mentioned response dated October 12, 2022, along with the following permanently saved files:

Directory: C:\SHARES\kabinet\Ecsi\Pendrive

Mode LastWriteTime Length File Name

-a---- 2022.04.05. 14:39 1,064,222,720 D18_20220330000615.mp4

-a---- 2022.04.05. 14:30 367,722,496 D19_20220330005230.mp4

-a---- 2022.04.05. 14:35 1,064,312,832 D19_20220330161020.mp4

video files.

(26)

Upon reviewing these video files, the Authority recorded the following findings:

The DVD data carrier contains a total of four (4) MP4 video files.

I. The recording D01_20220413140521 located in the folder named “uj” – according to the description – is a recording made by the camera capturing the public road of Kerepes City, named “Mogyoródi út temető,” between 14:05 and 14:55 on April 13, 2022. The recording shows vehicles and identifiable natural persons.

II. The recording D18_20220330000615 – according to the description – is a recording made by the camera capturing the HÉV stop named “Peron Átjáró” between 00:06 and 01:12 on March 30, 2022. The recording shows an identifiable natural person from 21 minutes and 33 seconds.

III. The recording D19_20220330005230 – according to the description – is a recording made by the camera capturing the environment of the HÉV stop named “Elektromos Hátú” between 00:52 and 01:48 on March 30, 2022. The recording shows a natural person from 02 minutes and 28 seconds, who can be identified based on their clothing in relation to the previous recording.

IV. The recording D19_20220330161020 – according to the description – is a recording made by the camera capturing the environment of the HÉV stop named “Elektromos Hátú” between 16:10 on March 30, 2022, and 07:16 on March 31, 2022. The recording shows identifiable natural persons passing through.

There was also no log entry among the log files extracted by the Authority during the inspection for these recordings.

(27)

The Authority – in the absence of the Client's statement – the

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Based on the publication list available at <https://www.kerepes.hu/szerz%C5%91d%C3%A9sek> – it was established that the installation of a public area surveillance camera system in the administrative territory of the City was carried out by Falcon-Pool Szolgáltató és Kereskedelmi Kft. (hereinafter: Falcon-Pool Kft.); subsequently, an inquiry was made to them. The response from Falcon-Pool Kft. included the following.

Falcon-Pool Kft. sent the contract dated March 21, 2016, concluded between them and the Municipality, which aimed at the installation of a public area surveillance camera system in the administrative territory of the City with a deadline of July 1, 2016. Falcon-Pool Kft. stated that they are no longer in a contractual relationship with the Municipality or the Client, and that another company was entrusted with the operation of the system in 2019. The documentation regarding the complex technical implementation of the surveillance camera system was handed over to the Municipality on August 9, 2016. Falcon-Pool Kft. did not provide internet access to the camera system or its devices. The camera image from the MÁV – HÉV Szilasliget station was connected to the system via radio, and the transmitted documentation includes the transmission route. At the time of the response, Falcon-Pool Kft. had no access to the camera system. The Mayor of the City did not have access to the camera system; access was granted to public area inspectors and district commissioners while there was a contractual relationship between Falcon-Pool Kft. and the Municipality.

(28)

On February 20, 2023, the Client – after submitting a request for an extension of the deadline for response, which the Authority granted, setting the deadline for response to February 10, 2023 – made the following statement in response to the Authority's request for clarification of facts:

Considering the circumstance that the Authority requested statements regarding data that require special expertise, according to the Client's position, the Client immediately contacted Testőr Kft. as the maintenance provider to assist in the response, which, however, did not yield results. Subsequently, the Client requested offers to find a suitable professional partner who would cooperate with the Client not only in performing maintenance tasks but also in ensuring continuous compliance with regulatory requirements. Since the time provided for making the statement was insufficient to conclude this process, the Client requested and received an extension from the Authority, then terminated the cooperation with Testőr Kft., contracted with Falcon-Pool Kft., executed the handover process of the camera system with the former and newly contracted economic entity, and subsequently obtained the data requested by the Authority, partly on February 17, 2023, and partly on February 20, 2023. The Client noted that without this process, they would not have been able to provide substantial answers to the questions contained in the Authority's decision.

After the extended deadline for response had elapsed, the Client sent the contract concluded with Falcon-Pool Kft. on February 16, 2023, which pertains to the operation of the camera system and is valid from February 16, 2023, until December 31, 2024, but may be extended by mutual agreement of the parties.

According to the Client's statement, the cameras of the camera system, the NVR, or any other network device did not have and do not have internet access, nor are they accessible from the internet.

The Client could not provide a statement regarding when, through what transmission route, and based on what plans the camera images from the MÁV – HÉV Szilasliget station were integrated into the camera system of the City of Kerepes.

To the Client's knowledge, there is no remote access to the network elements of the camera system. The maintenance tasks are also performed by Falcon-Pool Kft., according to the attached contract.

The Client's Law Enforcement Department and the Police have full access to the public area camera system. During the first operational period of Falcon-Pool Kft., no one had the authority to modify the access settings of the public area camera system; no such information is available from the period of Testőr Kft. To the Client's knowledge, there is no access to the public area...

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No one has remote access to the camera system (Quick Connect).

The Mayor – to the Client's knowledge – does not have access to the public area camera system. According to the Client's statement, there was no intervention, installation, copying, deletion, log checking, or modification concerning the video recorder NVR during the period between July 1, 2022, and September 30, 2022.

(29)

On April 4, 2023, Witness 2 was heard (his data handled confidentially at his request) before the Authority, who presented the following:

Witness 2 stated that he personally does not directly participate in data processing operations; the data processing takes place in a building completely separate from Witness 2's office, in a "protected system"; according to him, Witness 2 has no indirect or direct influence on data processing. He has no knowledge of how the images transmitted by the cameras are stored or the duration of storage.

To his knowledge, the current public area inspector is entitled to access the recordings, who [...]. Witness 2 did not have substantive knowledge of the rights of the public area inspector.

In response to a question, he stated that it is not the Mayor's duty to initiate official proceedings based on camera recordings or to file a report; thus, the Mayor has no responsibilities in this regard. He stated that the Mayor does not have access to any camera recordings. When asked when he became aware of such recordings and which ones they were, Witness 2 could not answer.

He stated that in the case of the notorious recording – concerning a man engaging in self-gratification – the Client is not a data controller; the video camera is not a public area camera but is located in a privately accessible area, as it is a suburban railway stop; thus, the data controller is MÁV-HÉV Zrt.; this fact is also indicated by signs at the location. The Mayor intended to exert some pressure on the perpetrator regarding the otherwise criminal act to surrender and report to the authorities. Initially, the Mayor did not see the recording itself; he was informed about the events verbally by the victim; subsequently, he published his call for the perpetrator to come forward. After this, the recording came into the Mayor's possession, but he does not remember how. He noted that when the Authority conducted an inspection, he would have had clearer memories; however, after such a time, he no longer remembers. He stated that he has already deleted the recording from everywhere and could not comment on what data carrier it came to him on. The Mayor made a video recording of himself with his own smartphone, in which he discussed the circumstances of the case and edited the notorious video into it. In response to an interjected question, he stated that he does not know who published the video recording on the Facebook page operating in the capacity of the mayor. This page is managed by several people, and he does not wish to comment on their identities.

Witness 2 stated that he does not have, nor has he ever had, direct access or remote access to the camera system; it is a completely closed system. He could not comment on who performs operations on the recordings and on what basis (e.g., obscuring faces).

In response to the Authority's question about how the Mayor generally used the camera recordings (e.g., saving from the camera system to another data carrier, storage, publication on social media, filing a report), for what purpose, and on what legal basis, Witness 2 stated the following: The City incurs several million forints each year due to procedures related to illegal waste disposal. It is a legal obligation for the mayor to participate in the reduction and prevention of crimes. Furthermore, he feels a moral obligation to act in defense of the population. He stated that the publication of the video recording also led to results in the case of the person engaging in self-gratification, as the perpetrator was identified based on it – due to his clothing. He stated that the municipal law effective from January 1, 2013, imposes obligations on the mayor.

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determines the action to be taken in the interest of public safety. Thus, in its opinion, the Mayor has a legal obligation to act in such cases. It believes that, based on this legal obligation, it acted lawfully when it assisted in the investigation of a crime. It stated that it does not store recordings from the public area camera system.

In response to the question of who uploads the content published on the Mayor's Facebook page and who decides what content/recordings are shared there, it stated that it has already provided this answer (it does not know, or did not comment).

Witness 2 could not comment on where the videos published on Facebook on June 16, 2020, and August 18, 2022, were sourced from. Regarding the previous case, it recalled that as soon as the Authority sent a letter on the matter, it removed the recording. It claims that it has never performed data recovery.

Witness 2 also could not comment on who uploaded the recordings published on the facebook.com social media site; nor could it specify the exact source of the video files during the upload, which data carrier or device was used. Therefore, it could not comment on what happened to the data carrier or other device after the recordings were uploaded, or where it was located at the time of the hearing.

Witness 2 was also unaware if anyone else besides them had used the relevant recordings. It could not comment on who, when, and on which device performed the "masking" or post-editing of the images for the recordings published on the facebook.com social media site.

Regarding the operator of the Facebook page named "Szervusz," it stated that it is the former deputy mayor, [...]. The page is the communication platform of the Kerepes Fidesz, to which the Mayor has no connection and never had.

According to Witness 2's recollections, the Mayor filed a report regarding the public area camera recording related to waste disposal, but it does not remember anymore. Witness 2's legal representative interjected that it is possible that the public area supervision made the report.

In response to a question, Witness 2 stated that it does not have the authority to enter the camera room. It could not comment on which company built the camera system, as it has been in place for at least 10 years. In recent years, according to Witness 2, the camera system was operated by Testőr Kft., and is currently operated by Falcon-Pool Kft.

Witness 2 had no knowledge of what video files are stored in the Customer's server in the folder named Ecsi, nor of who has access to the folder; Witness 2 did not use this folder.

In response to the question of who uploads the content published on the Mayor's Facebook page and who decides what content/recordings are shared there, it stated that this is not specifically decided by the Mayor. It has happened that it later became aware of what was published; it still did not wish to answer who uploads the content.

(30)

On April 4, 2023, a hearing took place before the Authority with [...] as a witness:

The witness stated that the Mayor has an assistant who manages correspondence and organizes meetings for them; they have no responsibilities regarding the public area camera system. The witness had no knowledge of the recordings captured by the camera system, the various permissions, and the operations performed on the camera recordings. To their knowledge, the Mayor cannot access any

recordings; they could not comment on how the Mayor accessed the recording of the person performing public self-gratification that appeared on Facebook. They did not know who posts content on the Mayor's Facebook profile, the witness is not an administrator and has no knowledge regarding this. They assume that the Mayor is involved in content sharing.

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The witness could not provide information regarding the source of the video recordings published on Facebook on June 16, 2020, and August 18, 2022; nor could they state who saved/copied the recording published on their social media on August 18, 2022, from the camera system. According to the witness, they first saw the video of the person engaging in public masturbation on Facebook, and that was the only way they became aware of it. They mentioned that their relationship with the Mayor was quite cold in August 2022, which may explain why they were not directly informed about the existence of the recording until its publication on Facebook.

They could not substantively comment on what video files are stored in the Client's server in the folder named Ecsi and for what purpose, nor who has access to it and who uses it.

To their knowledge, the images from public area cameras are managed by the public area supervision, and they have no knowledge of how these recordings reached the Mayor in this specific case.

(31)

The Authority used the following documents from the case file of the NAIH-7019/2022. investigation procedure during its decision-making process:

- Document NAIH-7019-2/2022, the Authority's inquiry to MÁV-HÉV Local Railway Limited Liability Company (hereinafter: MÁV-HÉV Zrt.);
- Document NAIH-7019-3/2022, the response from MÁV-HÉV Zrt.;
- Document NAIH-7019-4/2022, the Authority's inquiry to MÁV-HÉV Zrt.;
- Document NAIH-7019-5/2022, the response from MÁV-HÉV Zrt. dated December 1, 2022.

According to the content of these documents, the person engaging in public masturbation was recorded by a camera owned and independently operated by MÁV-HÉV Zrt. at the Szilasliget HÉV stop, which is a private area opened to the public. Based on the Cooperation Agreement (hereinafter: Agreement) established between MÁV-HÉV Zrt. and the Client on April 27, 2021, MÁV-HÉV Zrt. provides remote access to the live images from the cameras it owns (Szilasliget HÉV stop) to the Client. In this Agreement, the parties stipulated that only MÁV-HÉV Zrt. is entitled to export the recordings to a data carrier and to transfer them to a third party. The recorded person was not obscured in the live image. MÁV-HÉV Zrt. – since the Client violated the provisions of point 2.1 of the Agreement – requested the Client to comply with the terms of the Agreement and reported a data protection incident to the Authority. This warning letter was sent to the Authority.

According to MÁV-HÉV Zrt.'s position, the Client had no legal basis for saving and transmitting the recording. MÁV-HÉV Zrt. did not save the recording and did not transmit it.

(32)

On April 19, 2023, MÁV-HÉV Zrt. made the following statement in response to the Authority's inquiry regarding case number NAIH-507-12/2023:

They sent the response letter signed by the Mayor, dated September 13, 2022, which was written in response to the warning issued by MÁV-HÉV Zrt. mentioned above. In this letter, the Mayor suggested

that the Client and the professionals of MÁV-HÉV Zrt. contact each other to clarify the Agreement in accordance with the General Data Protection Regulation (GDPR) for the proper handling and transmission of personal data. They also proposed regulations for the electronic monitoring to be applied in the so-called "protected car."

MÁV-HÉV Zrt. stated that at the time of their response, the Client did not have access to the images from the cameras located at the Szilasliget HÉV stop, nor to the images from other cameras operated by MÁV-HÉV Zrt. They further stated that the possibility of viewing the images from the cameras installed at the Szilasliget stop was made available after the conclusion of the Agreement; point 2.2 of this Agreement stipulates that MÁV-HÉV Zrt. will integrate into the City's camera system,

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Access to the live images of the individual cameras was granted solely through a network connection; the Municipality was able to connect its own optical cable to the optical receiver of MÁV-HÉV Zrt.

MÁV-HÉV Zrt. stated that it does not consider itself a joint data controller with the Client regarding these cameras. It is evident from point 2.1 of the Agreement that MÁV-HÉV Zrt. authorized the Client for remote access, specifying the purpose and means of data processing.

(33)

On June 15, 2023, the Client made the following statement in response to the Authority's request for clarification regarding case number NAIH-507-16/2023:

The Client submitted the information security audit report of the City Camera System (hereinafter: Report), which, according to its executive summary, indicates that the Client operates the City Camera System (hereinafter: System). The Report states that, pursuant to Section 7 (1-2) of the Ibtv., organizations falling under the scope of the Ibtv. must classify their electronic information systems into security classes. The Clerk, together with the person responsible for the security of the Client's electronic information systems, classified the system into security class 3. The System was introduced earlier, and there is no information regarding its specific date. The Report recorded the results of the security review of the System and identified non-compliances, for which an action plan will be prepared, specifying responsibilities and deadlines.

The Report records the following non-compliances:

3.1.1.1. IT Security Policy

Assessment: The Office has an IT Security Policy; however, its review is warranted. The results of the System's security classification must be recorded in it.

Decision: Non-compliant.

3.1.1.3. Action Plan and Milestones

Assessment: The Office has not prepared an action plan to meet the requirements prescribed for the applicable security class concerning the System.

Decision: Non-compliant.

3.1.1.4. Registry of Electronic Information Systems

Assessment: The registry of the Office's electronic information systems does not include the System.

Decision: Non-compliant.

3.1.2.2. Security Classification

Assessment: The IBSZ does not include this. It was performed during the current review.

Decision: Non-compliant.

3.1.2.3. Risk Analysis

Assessment: The Office has a risk analysis; however, its review is warranted, particularly concerning the introduced System.

Decision: Non-compliant.

3.1.3.2. Resource Requirement Assessment

Assessment: This was not performed at the time of the System's introduction.

Decision: Non-compliant.

3.1.3.3. Procurements

Assessment: The relevant requirement was not fulfilled at the time of the System's introduction.

Decision: Non-compliant.

3.1.3.4. Documentation Related to the Electronic Information System

Assessment: The System has user documentation; however, it lacks administrative documentation.

Decision: Non-compliant.

3.1.3.8. Continuous Monitoring

Assessment: The IBSZ does not include this, a new requirement arising from the System's security class 3.

Decision: Non-compliant.

3.1.4.2. Business Continuity Plan for IT Resource Failures

Assessment: The Office has a business continuity plan; however, it does not include the determination of the System's RTO and RPO values and does not include the System's recovery plan.

Decision: Non-compliant.

3.1.4.3. Training for Continuous Operation

Assessment: No such training has yet been conducted concerning the System.

Decision: Non-compliant.

3.1.4.8. Backups of the Electronic Information System

Assessment: The System currently has no backups.

Decision: Non-compliant.

3.1.4.9. Recovery and Restart of the Electronic Information System

Assessment: The System has no backups; therefore, its recovery cannot be guaranteed.

Decision: Non-compliant.

3.1.5.8. Security Incident Management Plan

Assessment: The IBSZ does not include this, a new requirement arising from the System's security class 3.

Decision: Non-compliant.

3.1.5.9. Training for Handling Security Incidents

Assessment: The IBSZ does not include this, a new requirement arising from the System's security class 3.

Decision: Non-compliant.

3.1.6.6. Requirements for External Organizations in Contractual Relationship with the Affected Organization

Assessment: The IBSZ includes the relevant requirement; however, the contract for the operation of the System does not include it.

Decision: Non-compliant.

3.1.7.3. Security Awareness Training

Assessment: This has been conducted several times in the past. A refresher security awareness training is warranted using the online training material published by IBF.

Decision: Non-compliant.

3.2.1.2. Physical Security Procedures

Assessment: Regulated as part of the IBSZ, but does not address the room storing the camera system.

Decision: Non-compliant.

3.2.1.3. Physical Access Permissions

Assessment: The central unit of the System is located in the Public Area Supervision building. The circle of those authorized for access has not been defined.

Decision: Non-compliant.

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3.2.1.4. Physical Access Control

Assessment: Currently, an electronic access control system operates in the building that houses the camera system, and the building can also be locked/unlocked with a regular key. The access control system only logs entries, not exits. In the case of entry with a key, entries and exits are not logged.

Decision: Not compliant.

3.2.1.7. Supervision of Physical Access

Assessment: See point 3.2.1.4

Decision: Not compliant.

3.2.1.8. Visitor Control

Assessment: Visitor control and registration do not take place.

Decision: Not compliant.

3.2.1.12. Fire Protection

Assessment: The room does not have a fire alarm; a fire extinguisher suitable for extinguishing electrical fires is available in the room.

Decision: Not compliant.

3.2.1.19. Maintenance Personnel

Assessment: The scope of maintenance personnel has not been defined, and there is no record kept of the maintenance personnel.

Decision: Not compliant.

3.3.2.2. System Security Plan

Assessment: The System does not have a system security plan or an equivalent document that outlines the protective measures.

Decision: Not compliant.

3.3.2.3. Action Plan

Assessment: The Office does not have an action plan to address the identified deficiencies.

Decision: Not compliant.

3.3.4.1. Security Analysis Procedure

Assessment: The IBSZ does not include this; it is a new requirement arising from the System's security class 3.

Decision: Not compliant.

3.3.4.2. Security Assessments

Assessment: The IBSZ does not include this; it is a new requirement arising from the System's security class 3.

Decision: Not compliant.

3.3.4.4. Measurement of Security Performance

Assessment: The IBSZ does not include this; it is a new requirement arising from the System's security class 3.

Decision: Not compliant.

3.3.5.1. Testing, Training, and Supervision Procedures

Assessment: The IBSZ does not include this; it is a new requirement arising from the System's security class 3.

Decision: Not compliant.

3.3.5.2. Measurement of Security Performance

Assessment: The IBSZ does not include this; it is a new requirement arising from the System's security class 3.

Decision: Not compliant.

3.3.5.3. Vulnerability Testing

Assessment: No vulnerability testing has been conducted on the System.

Decision: Not compliant.

3.3.5.3.2. Update Capability

Assessment: No vulnerability testing has been conducted on the System.

Decision: Not compliant.

3.3.5.3.3. Updates at Intervals, Before New Testing, or Following the Discovery of New Vulnerabilities.

Assessment: No vulnerability testing has been conducted on the System.

Decision: Not compliant.

3.3.5.3.4. Privileged Access

Assessment: No vulnerability testing has been conducted on the System.

Decision: Not compliant.

3.3.5.3.5. Disclosable Information

Assessment: No vulnerability testing has been conducted on the System.

Decision: Not compliant.

3.3.6.2. Baseline Configuration

Assessment: The original implementation documentation includes the system configuration. Since then, another company has taken over the operation of the system. There is no information on modifications that have occurred in the meantime. Recently, the original supplier has resumed maintenance of the system. Currently, a comprehensive review and modernization of the entire system is underway. After its completion, the supplier will prepare updated documents, in which we will require the necessary information security elements from the office.

Decision: Not compliant.

3.3.6.3. Monitoring of Configuration Changes (Change Management)

Assessment: The IBSZ does not include this; it is a new requirement arising from the System's security class 3.

Decision: Not compliant.

3.3.6.3.2. Preliminary Testing and Confirmation

Assessment: The IBSZ does not include this; it is a new requirement arising from the System's security class 3.

Decision: Not compliant.

3.3.6.4. Security Impact Assessment

Assessment: The IBSZ does not include this; it is a new requirement arising from the System's security class 3.

Decision: Not compliant.

3.3.6.6. Configuration Settings

Assessment: See 3.3.6.2.

Decision: Not compliant.

3.3.7.2. Regular Maintenance

Assessment: Maintenance tasks are performed by a contracted external party. They document the tasks performed. They do not have a maintenance record.

Decision: Not compliant.

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3.3.8.2. Access to Data Carriers

Assessment: No specific definition was provided for the System.

Decision: Non-compliant.

3.3.9.2. Identification and Authentication

Assessment: Access to several elements of the System can be obtained after identification and authentication. These include:

Central unit: Currently, access to the system is available through built-in administrator and guest accounts.

City cameras and antennas: There is no information regarding user accounts.

Decision: Non-compliant.

3.3.9.2.2. Network Access to Privileged Accounts

Assessment: The System only supports knowledge-based authentication. There is no possibility to apply multi-factor authentication. In the future, the central device will be placed in a secured location, accessible only to authorized personnel, not to users.

Decision: Non-compliant.

3.3.12.4. Log Storage Capacity

Assessment: Currently, there is no information on how much storage capacity has been provided for storing log entries.

Decision: Non-compliant.

3.3.12.5. Handling Logging Errors

Assessment: Currently, there is no information on how the system handles situations when it cannot log.

Decision: Non-compliant.

3.3.12.11. Retention of Log Entries

Assessment: Currently, there is no information on how long the System retains log information. Log information is overwritten. The System is currently not backed up.

Decision: Non-compliant.

The Client submitted the Minutes prepared on June 12, 2023, to the Authority on June 15, 2023, which was acceptable as a response to question number 8 of the NAIH-507-16/2023 case clarification decision. Furthermore, no responses were received to the nine questions posed by the Authority, and

the Client did not provide any further requests for deadline extensions or explanations.

(34)

The Client's representative informed the Authority via email on June 23, 2023, at 11:18 AM that they had submitted their response to the previous case clarification decision within the deadline through the official portal, which they can also verify. All documents referenced by the Client were received on June 23, 2023. This included the Client's proof that the relevant documents were sent on time – on June 15, 2023 – (screenshot of the ASP document management subsystem).

The Client stated the following regarding the questions posed in the context of case clarification:

The Client indicated that the purpose and legal basis for handling the camera recordings named D01_20220413140521, D18_20220330000615, D19_20220330005230, and D19_20220330161020 stored in the folder “C:\SHARES\kabinet\Ecsi\” on their server could not be determined by the internal investigation. For the data processing purpose, the law enforcement purpose was subsequently indicated, and for the legal basis, the Client referred to Section 5, Paragraph 1(a) of the Infotv. The Clerk has no knowledge of the use of the recordings.

The reason for storing the recordings for more than 30 days could not be revealed by the Client – according to their response – as at the time of the recordings and their storage, the Clerk had not yet assumed their current position. These recordings are no longer available; following the internal investigation, these video files were deleted on February 28, 2023. According to the response, the recordings were only accessible to public area supervision.

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munkatársai ismerték meg. Állítását a nyilatkozatán túl egyéb módon (a tényleges megtekintéseket, mentéseket, stb. tanúsító dokumentummal) igazolni nem tudta. [...] foglalkoztatási jogviszonyt igazoló szerződését (amely beosztását is tartalmazza) megküldte Ügyfél, kinevezésének napja 2021. október 21. napja volt, a jogviszonya azóta is fennáll.

(35) Jelen adatvédelmi hatósági eljárás során a Hatóság mindösszesen három alkalommal szabott ki eljárási bírságot Ügyféllel szemben az alábbiak szerint:

A Hatóság a NAIH-7398-14/2023. iktatószámú végzésével Ügyféllel szemben háromszázezer forint eljárási bírságot szabott ki, mivel Ügyfél – a Hatóság megállapítása szerint – a szemle eredményes lefolytatását akadályozta. Ügyfél a Hatóság végzésével szemben keresetlevelet nyújtott be a Fővárosi Törvényszékhez, melynek eredményeképpen a bíróság a Hatóság végzését megsemmisítette.

A Hatóság a NAIH-507-4/2023. iktatószámú végzésével Ügyféllel szemben háromszázötvenezer forint eljárási bírságot szabott ki, mivel Ügyfél – a Hatóság megállapítása szerint – önhibájából fakadóan a tényállás tisztázását akadályozta azzal, hogy a tényállás tisztázó végzésre – a meghosszabbított határidő ellenére – határidőben nem válaszolt. Ügyfél a Hatóság végzésével szemben keresetlevelet nyújtott be a Fővárosi Törvényszékhez. A Fővárosi Törvényszék a támadott végzést megsemmisítette és új eljárás lefolytatására kötelezte a Hatóságot. A Hatóság NAIH-507-31/2023. számon – az új eljárása keretében – kettőszázötvenezer forint eljárási bírságot szabott ki Ügyféllel szemben.

A Hatóság a NAIH-507-21/2023. iktatószámú végzésével Ügyféllel szemben ötszázezer forint eljárási bírságot szabott ki, mivel Ügyfél – a Hatóság megállapítása szerint – önhibájából fakadóan a tényállás tisztázását akadályozta azzal, hogy a tényállás tisztázó végzésre – a meghosszabbított

határidő ellenére – határidőben nem válaszolt teljes körűen. Ügyfél a Hatóság e végzésével szemben is keresetlevelet nyújtott be a Fővárosi Törvényszékhez.

III. Alkalmazott jogszabályi rendelkezések

(36) Az Infotv. 60. § (1) bekezdése alapján a személyes adatok védelméhez való jog érvényesülése érdekében a Hatóság az érintett erre irányuló kérelmére adatvédelmi hatósági eljárást indít és hivatalból adatvédelmi hatósági eljárást indíthat.

(37) Az Infotv. 2. § (3) bekezdése szerint a személyes adatok bűnüldözési célú kezelésére e törvényt kell alkalmazni.

(38) Az Infotv. 3. § 2. pontja alapján személyes adat az érintettre vonatkozó bármely információ.

(39) Az Infotv. 3. § 4. pontja szerint bűnügyi személyes adat a büntetőeljárás során vagy azt megelőzően a bűncselekménnyel vagy a büntetőeljárással összefüggésben, a büntetőeljárás lefolytatására, illetve a bűncselekmények felderítésére jogosult szerveknél, továbbá a büntetés-végrehajtás szervezeténél keletkezett, az érintettel kapcsolatba hozható, valamint a büntetett előéletre vonatkozó személyes adat.

(40) Az Infotv. 3. § 9. pontja értelmében adatkezelő az a természetes vagy jogi személy, illetve jogi személyiséggel nem rendelkező szervezet, aki vagy amely – törvényben vagy az Európai Unió kötelező jogi aktusában meghatározott keretek között – önállóan vagy másokkal együtt az adat kezelésének célját meghatározza, az adatkezelésre (beleértve a felhasznált eszközt) vonatkozó döntéseket meghozza és végrehajtja, vagy az adatfeldolgozóval végrehajtatja.

(41) Az Infotv. 3. § 10. pontja értelmében adatkezelés az alkalmazott eljárástól függetlenül az adaton végzett bármely művelet vagy a műveletek összessége, így különösen gyűjtése, felvétele, rögzítése, rendszerezése, tárolása, megváltoztatása, felhasználása, lekérdezése, továbbítása, nyilvánosságra hozatala, összehangolása vagy összekapcsolása, zárolása, törlése és megsemmisítése, valamint az

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data further use prevention, making photographs, audio or video recordings, as well as recording physical characteristics suitable for personal identification (e.g., fingerprint or palm print, DNA sample, iris image).

(42) According to Section 3, point 10a of the Infotv., data processing for law enforcement purposes is carried out by an authority or person conducting activities aimed at preventing or eliminating threats to public order or public safety, crime prevention, crime detection, conducting criminal proceedings or cooperating in such proceedings, preventing and detecting offenses, as well as conducting or cooperating in administrative offense proceedings, and executing legal consequences established in criminal or administrative offense proceedings, within the framework and for the purpose of these activities - including the processing of personal data related to these activities for archival, scientific, statistical, or historical purposes.

(43) According to Section 3, point 11 of the Infotv., data transmission means making the data accessible to a specified third party.

(44) According to Section 3, point 12 of the Infotv., disclosure means making the data accessible to

anyone.

(45) According to Section 3, point 26 of the Infotv., a data protection incident is a breach of data security that results in the accidental or unlawful destruction, loss, alteration, unauthorized transmission, or disclosure of personal data that is transmitted, stored, or otherwise processed, or unauthorized access to such data.

(46) According to Section 4, paragraph (1) of the Infotv., personal data may only be processed for a clearly defined, lawful purpose, for the exercise of rights and the fulfillment of obligations. Data processing must comply with the purpose of data processing at every stage, and the collection and processing of data must be fair and lawful. According to the same paragraph (2), only personal data that is essential for the realization of the purpose of data processing may be processed; the personal data may only be processed to the extent and duration necessary for the realization of the purpose. According to paragraph (3), personal data retains this quality during data processing as long as its relationship with the data subject can be restored. The relationship with the data subject can be restored if the data controller has the technical conditions necessary for restoration. According to paragraph (4a), during data processing, appropriate technical or organizational measures must be applied to ensure the proper security of personal data, thus particularly establishing protection against unauthorized or unlawful processing, accidental loss, destruction, or damage of data.

(47) According to Section 5, paragraph (1) of the Infotv., personal data may be processed if

- a) it is ordered by law or, based on the authorization of law, within the scope defined therein, for a purpose based on public interest, for data that does not qualify as special data or criminal personal data, by a local government decree,
- b) in the absence of the provisions in point a), it is absolutely necessary for the fulfillment of the tasks defined by law for the data controller, and the data subject has explicitly consented to the processing of personal data,
- c) in the absence of the provisions in point a), it is necessary for the protection of vital interests of the data subject or another person, and for the prevention or elimination of a direct threat to life, physical integrity, or property of individuals, and it is proportionate, or
- d) in the absence of the provisions in point a), the personal data has been explicitly disclosed by the data subject and is necessary and proportionate for the realization of the purpose of data processing.

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(2) Special Data

- a) as defined in points c) and d) of paragraph (1), or
- b) may be processed if it is absolutely necessary for the implementation of an international treaty promulgated by law and is proportionate, or if it is mandated by law for the enforcement of a fundamental right guaranteed by the Fundamental Law, as well as for national security, the prevention, detection, or prosecution of crimes, or for defense interests.

(48) According to Section 5(6) of the Infotv., in the case of processing special data, the data controller, or the data processor acting on its behalf or at its direction, shall ensure through appropriate technical and organizational measures that only those who need access to the special data for the performance of their tasks related to the data processing operation have access.

(49) According to Section 5(7) of the Infotv., in the case of processing criminal personal data – unless otherwise provided by law, an international treaty, or a binding legal act of the European Union – the rules regarding the conditions for processing special data must be applied.

(50) According to Section 23(2) of the Infotv., the data controller and the data processor are obliged to prove that the data processing complies with the provisions defined in the law or in the binding legal acts of the European Union regarding the processing of personal data – particularly in the case of data processing falling under the scope of Section 2(3), the fundamental requirements defined in Section 4(1)–(4a).

(51) Section 25/A(1) of the Infotv. stipulates that the data controller shall take technical and organizational measures that correspond to all circumstances of the data processing, particularly its purpose, to ensure the legality of the data processing and the enforcement of the fundamental rights of the data subjects in relation to the risks posed by the data processing, including the application of pseudonymization where justified. These measures shall be regularly reviewed by the data controller and appropriately modified if necessary.

(2) The measures defined in paragraph (1) shall be designed to ensure that

a) they serve the effective enforcement of the requirements regarding the processing of personal data, particularly the principles of data processing and the rights of data subjects, in a reasonably achievable manner, taking into account the current state of science and technology and the costs of implementing the measures, and

b) they are suitable and adequate to ensure that by default

ba) only such personal data is processed, and only to the extent and duration necessary for the purpose of the data processing, and

bb) the personal data processed by the data controller shall not become publicly accessible without the explicit will of the data subject.

According to paragraph (3) of the same section, if the data controller is obliged to designate a data protection officer, as part of the measures defined in paragraph (1), the data controller shall establish and apply an internal data protection and data security policy.

(52) According to Section 25/E of the Infotv.:

(1) The data controller shall provide information regarding its data processing activities related to the personal data in its possession, the

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****Regarding the registration of data protection incidents and measures related to the data subject's right of access****

The data controller maintains a record (hereinafter collectively referred to as the data controller's register).

In the data controller's register, the data controller records:

a) the name and contact details of the data controller, including each joint data controller, as well as the data protection officer,

b) the purpose or purposes of data processing,

c) in the case of the transfer or planned transfer of personal data, the categories of recipients of the data transfer – including recipients in third countries and international organizations,

d) the data subjects and the categories of data processed,

e) the fact of the application of profiling,

f) in the case of international data transfer, the categories of data transferred,

g) the legal bases for the data processing operations – including data transfers,

h) if known, the date of deletion of the processed personal data,

- i) a general description of the technical and organizational security measures implemented under this law,
- j) the circumstances of the occurrence of data protection incidents related to the data processed by it, their effects, and the measures taken to address them,
- k) the legal and factual grounds for any measures that restrict or deny the enforcement of the data subject's right of access under this law.

(2) The data processor maintains a record of the data processing it carries out on behalf of or according to the instructions of individual data controllers (hereinafter: data processor's register). In the data processor's register, the data processor records:

- a) the name and contact details of the data controller, the data processor, any further data processors, and the data processor's data protection officer;
- b) the types of data processing carried out on behalf of or according to the instructions of the data controller;
- c) in the case of international data transfer carried out at the explicit instruction of the data controller, the fact of the international data transfer and the designation of the recipient third country or international organization;
- d) a general description of the technical and organizational security measures implemented under this law.

(3) The data controller's and data processor's registers must be maintained in written or electronically recorded form and must be made available to the Authority upon request.

(53) According to Section 25/F (1) of the Infotv., for the purpose of verifying the legality of data processing operations carried out electronically with personal data, the data controller and the data processor record in an automated data processing system (hereinafter: electronic log)

- a) the determination of the categories of personal data involved in the data processing operation,
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- b) the purpose and justification of the data processing operation,
- c) the exact time of the data processing operation,
- d) the identification of the person executing the data processing operation,
- e) in the case of data transfer, the recipient of the data transfer.

(2) The data recorded in the electronic log can only be accessed and used for the purpose of verifying the legality of the data processing, enforcing data security requirements, and conducting criminal proceedings.

(3) The Authority, as well as persons and organizations conducting activities defined by law for the purpose specified in paragraph (2), shall be granted access to the electronic log by the data controller and the data processor upon their request, and data shall be transmitted to them.

(4) The data recorded in the data controller and data processor registers, as well as in the electronic log, must be retained for ten years following the deletion of the processed data.

(54) Section 25/I (1) of the Infotv. states that the data controller and the data processor shall take technical and organizational measures commensurate with the level of risk posed by the data processing to ensure the fundamental rights of the data subjects, particularly in relation to the processing of special categories of data.

According to paragraph (2), in the design and implementation of the measures specified in paragraph

(1), the data controller and the data processor shall take into account all circumstances of the data processing, including the current state of science and technology, the costs of implementing the measures, the nature, scope, and purposes of the data processing, as well as the variable probabilities and severity of risks posed by the data processing to the exercise of the rights of the data subjects.

According to paragraph (3), the data controller and the data processor within their scope of activity shall ensure, through the measures specified in paragraph (1),

- a) the denial of access to the data processing tools (hereinafter: data processing system) by unauthorized persons,
- b) the prevention of unauthorized reading, copying, modification, or removal of data carriers,
- c) the prevention of unauthorized input of personal data into the data processing system, as well as unauthorized access, modification, or deletion of personal data stored therein,
- d) the prevention of the use of data processing systems by unauthorized persons via data transmission devices,
- e) that persons authorized to use the data processing system can only access the personal data specified in the access permit,
- f) that it is verifiable and ascertainable to which recipient personal data was transmitted or may be transmitted via data transmission devices, or made available,
- g) that it is subsequently verifiable and ascertainable which personal data was entered into the data processing system, at what time, and by whom,
- h) the prevention of unauthorized access, copying, modification, or deletion of personal data during its transmission or while transporting the data carrier,

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- i) that in the event of a malfunction, the data controller's system can be restored, and
- j) that the data controller's system remains operational, a report is prepared regarding any errors that occur during its operation, and that the stored personal data cannot be altered due to the faulty operation of the system.

(55) According to Section 25/J (1) of the Infotv., the data controller records the data specified in paragraph (5) points a), c), and d) in connection with any data protection incident arising from the data processed by it or by the data processor acting on its behalf or under its instructions, and reports the data protection incident to the Authority without delay, but no later than within seventy-two hours of becoming aware of the data protection incident.

(2) A data protection incident does not need to be reported if it is likely that it does not pose a risk to the enforcement of the rights of the data subjects.

(3) If the data controller is unable to fulfill the reporting obligation specified in paragraph (1) within the deadline due to an impediment, it shall fulfill it without delay after the impediment has ceased, and shall attach a statement explaining the reasons for the delay to the report.

(4) If the data protection incident arises in connection with the activities of the data processor or is otherwise detected by the data processor, it shall promptly inform the data controller of the incident after becoming aware of it.

(5) Within the framework of the reporting obligation specified in paragraph (1), the data controller

- a) describes the nature of the data protection incident, including – if possible – the scope and approximate number of affected data subjects, as well as the scope and approximate quantity of the data involved in the incident,

- b) provides information about the name and contact details of the data protection officer or another contact person designated to provide further information,
- c) outlines the likely consequences resulting from the data protection incident, and
- d) describes the measures taken or planned by the data controller to address the data protection incident – aimed at mitigating any potential adverse consequences resulting from the data protection incident and other measures.

(6) If any information specified in points a)–d) of paragraph (5) is not available to the data controller at the time of the report, the data controller shall supplement the report subsequently – without delay after becoming aware of the information's availability.

(8) The data controller fulfills the reporting obligation specified in paragraph (1) – with the exception of reports containing classified data – on the electronic platform provided by the Authority for this purpose.

(56) According to Section 25/K (1) of the Infotv., if the data protection incident is likely to have significant consequences affecting the enforcement of any fundamental rights of the data subject (hereinafter: high-risk data protection incident), the data controller shall promptly inform the data subject of the data protection incident, except for data processing for national security purposes.

(2) The data controller is exempt from the obligation to inform the data subject as specified in paragraph (1) if

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- a) The data controller applied appropriate technical and organizational protective measures regarding the data affected by the data protection incident prior to the incident, thus particularly measures that render the data unintelligible in the event of unauthorized access, resulting in their encryption,
- b) The data controller ensured through the measures taken after becoming aware of the data protection incident that the consequences likely to significantly affect the enforcement of any fundamental right of the data subject do not occur due to the data protection incident,
- c) The direct notification of the data subject as referred to in paragraph (1) could only be fulfilled with disproportionate effort by the data controller; therefore, the data controller provides appropriate information related to the data protection incident in a manner accessible to anyone, or
- d) The law excludes the notification as defined in paragraph (6).

(3) Within the framework of the notification obligation defined in paragraph (1), the data controller clearly and understandably describes the nature of the data protection incident and provides the data subject with the information specified in points b), c), and d) of section 25/J. (5).

(4) If the Authority, based on the notification made in accordance with section 25/J. (1), establishes that the data protection incident requires the notification of the data subject due to its high risk, the data controller shall promptly fulfill its notification obligation as defined in paragraph (1) following this determination.

(5) The data controller is not obliged to fulfill the notification obligation defined in paragraph (1) if the Authority establishes the existence of the circumstances defined in points a)–d) of paragraph (2) based on the notification made in accordance with section 25/J. (1).

(6) Notwithstanding the provisions of paragraphs (1)–(5), the law may exclude, limit, or prescribe the delayed fulfillment of the notification to the data subject under the conditions and reasons set forth in section 16. (3).

(57) Act LXIII of 1999 on Public Area Surveillance (hereinafter: Kftv.)

7. § (1) The supervisor performs the tasks defined by law within the jurisdiction of the supervision.

(2) The supervisor may take photographs, audio recordings, or video and audio recordings (hereinafter collectively referred to as recordings) of the person affected by the measure, the environment and circumstances relevant to the measure or procedure, and the subject.

(3) For public safety and crime prevention purposes, the supervision may place image capture devices in a manner that is obviously noticeable to anyone and may make recordings. The placement of the image capture device and the designation of the public area monitored by the image capture device is decided by the representative body upon the proposal of the supervision.

(4) The image capture device is operated and managed by the supervision. The supervision informs the police about the placement of the image capture devices and the public area monitored by them, and publishes this data on the website of the mayor's office of the municipality operating the supervision.

(5) A warning sign or information must be placed in a manner that facilitates the notification of individuals entering the area monitored by the image capture device regarding the placement of the image capture devices and the fact of data processing.

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(5a) The authority cooperates with the central data storage service provider designated by the Government as specified in the legislation. The recording defined in paragraph (3) shall be stored by the authority at the data storage provided by the central data storage service provider designated by the Government, provided that the technical and technological conditions are met.

(6) The recording made based on the provisions of paragraphs (2) and (3) can be used in the following proceedings at the location of the recording:

- a) in proceedings initiated due to a committed crime or offense,
- b) in administrative authority proceedings initiated due to a committed violation,
- c) in administrative authority proceedings aimed at establishing the legality of supervisory measures, as well as
- d) in proceedings initiated by the person appearing in the recording for the exercise of their rights.

(6a) The recording defined in paragraph (3) can also be used for the following purposes:

- a) for the prevention, detection, and interruption of terrorist acts or other crimes,
- b) for the performance of national security protection and counteraction, intelligence gathering, as well as national security, industrial security, internal security, and crime prevention monitoring tasks,
- c) for the performance of disaster management and fire protection authority tasks, and
- d) for the identification of a wanted person or object.

(7) The authority shall:

- a) delete the recording made based on paragraph (2) thirty days after the recording,
 - b) delete the recording made based on paragraph (3) immediately thirty days after the recording.
- (8) The supervisor is obliged to initiate the procedure within two working days from the recording of the recording, or to request the initiation of the procedure from the competent authority or body. If the competent authority or body has initiated the procedure at the request of the supervisor and has informed the supervisor within the deadline specified in paragraph (7), the supervisor may manage the recorded recording until its transfer to the competent authority or body, provided that the duration of data processing does not exceed thirty days.

(9) If the person appearing in the recording has initiated proceedings for the enforcement of their rights according to point d) of paragraph (6), the recording must be forwarded upon request submitted within the data processing deadline.

(10) If the recorded recording has been forwarded by the supervisor at the request of the competent authority or body, or at the request of the person appearing in the recording, the recording must be deleted simultaneously with the forwarding.

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According to Section 7/A (1) of the Act on the Protection of Personal Data (Kftv.), the authority is obliged to take the necessary organizational, technical, and other data security measures during the handling of recordings to protect the personal data of the affected individual, particularly their private secrets and circumstances of private life, from unauthorized access. The authority must also ensure that the individual featured in the recording can view the recording made of them until the time of its deletion.

(2) The recorded footage may be forwarded by the supervising authority for the purpose specified in Section 7 (6) – as evidence – to the authority entitled to conduct administrative offense proceedings, or in criminal proceedings to the court, the prosecutor's office, the investigative authority, or the authority conducting preparatory proceedings, upon their request or data inquiry. The request or data inquiry must specify the subject of the proceedings, the case number, and the fact to be proven by the recorded footage.

(3) In administrative authority proceedings, the recorded footage may be forwarded at the request of the acting authority according to paragraph (2), provided that the requesting authority specifies the subject of the proceedings, the case number, and the fact to be proven by the recorded footage in the request.

(3a) The recorded footage shall be forwarded by the supervising authority to the police, the national security service, or the professional disaster management authority upon their request for the purpose specified in Section 7 (6a).

(4) A request for the forwarding of recorded footage must be denied if the footage is unsuitable for proving the fact specified in the request.

(5) Anyone whose right or legitimate interest is affected by the event, action, or measure recorded in the footage may request that the authority not delete the footage until its forwarding, but for no longer than thirty days following the submission of the request, for the purpose specified in Section 7 (6).

(6) The information provided to the individual featured in the recorded footage regarding data forwarding is free of charge.

According to Section 8 (1) of the Kftv., if there is no public area supervision or public area supervisor operating at the municipal local government, the image recording device specified in Section 7 (3) may also be operated and managed by the notary or a public official designated by the representative body who is employed by the municipal local government.

(2) In the case specified in paragraph (1), the provisions of Sections 7 and 7/A must be applied accordingly regarding the placement, operation, data management, use, and forwarding of the footage, as well as cooperation with the central data storage service provider designated by the Government.

(58) According to Section 60/A (1) of the Information Act (Infotv.), the administrative deadline in the data protection authority procedure is one hundred and fifty days, which does not include the time from the call for the provision of data necessary for clarifying the facts until its fulfillment.

(59) According to Section 61 (1) b) of the Infotv., in its decision made in the data protection authority procedure, the Authority may establish the fact of unlawful processing of personal data in connection with the data processing operations defined in Section 2 (3) of the Infotv., may order the correction of

inaccurate personal data, may order the blocking, deletion, or destruction of unlawfully processed personal data, may prohibit the unlawful processing of personal data, may prohibit the transfer or handover of personal data abroad, may order the notification of the affected individual if it was unlawfully denied by the data controller, and may impose a fine.

(60) According to Section 61 (4) a) of the Infotv., the amount of the fine may range from one hundred thousand to twenty million forints. According to Section 61 (5) of the Infotv., the Authority shall decide whether it is justified to impose a fine.

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(1) In determining the imposition of a fine under point b) of paragraph (1) and the assessment of the amount of the fine, all circumstances of the case shall be taken into account, particularly the number of individuals affected by the infringement, the severity of the infringement, the assignability of the behavior, and whether a previous infringement related to the processing of personal data has been established against the infringer.

(61) According to Section 61 (2) of the Infotv., the Authority may order the publication of its decision – with the identification data of the data controller and the data processor being made public – if the decision affects a wide range of individuals, is related to the activities of a public authority, or the severity of the infringement justifies its publication.

(62) Pursuant to Section 71 (1) of the Infotv., during its proceedings, the Authority may process all personal data, as well as data classified as protected secrets by law and data related to the exercise of a profession, to the extent and duration necessary for conducting the proceedings. According to paragraph (2), the Authority may use documents, data, or other evidence lawfully obtained during its proceedings in other proceedings.

(63) According to Section 28 of the Ákr.:

(1) The authority shall order the closed processing of the natural identification data and address of the client or other participants in the proceedings upon request or ex officio, if

a) they may suffer serious adverse consequences due to their participation in the proceedings, or
b) in another court or authority proceeding that is definitively or permanently closed, or is ongoing in parallel and known to the authority, the closed processing of the data of the client or other participants in the proceedings has been ordered based on the same facts.

(2) An expert may request the closed processing of their natural identification data and address, excluding the public data of the judicial expert registry, as stated in paragraph (1).

(3) The authority

a) shall communicate the decision on the closed processing of the data only to the person whose data has been ordered to be processed in a closed manner,
b) shall handle the natural identification data and address separately and in a closed manner among the documents of the case, and
c) shall ensure that the data processed in a closed manner do not become accessible during procedural acts.

(64) According to Section 103 (1) of the Ákr., in an authority proceeding initiated ex officio, the provisions of the Ákr. regarding proceedings initiated upon request shall be applied with the deviations set forth in Chapter VII of the Ákr.

(65) According to Section 104 (1) point a) of the Ákr., the authority shall initiate the proceedings ex

officio within its jurisdiction if it becomes aware of circumstances that warrant the initiation of the proceedings; according to the same § (3), the ex officio procedure shall commence on the day of the first procedural act, and the known client shall be notified by the authority about the initiation.

(66) According to Section 103 (4) of the Ákr., if the authority exceeds twice the administrative deadline in the ex officio procedure, the fact of the infringement and the unlawful behavior shall be established.

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The authority may not apply any other legal consequences beyond the obligation to terminate or restore the lawful state. In this case, no new proceedings may be initiated against the same client based on the same factual and legal grounds.

(67) According to Section 2 (1) of the Ibtv., the scope of the Ibtv. extends to the offices of the representative body of local governments.

(68) According to Section 5 of the Ibtv., during the entire lifecycle of electronic information systems falling under the scope of the Ibtv., the following must be implemented and ensured:

- a) the confidentiality, integrity, and availability of data and information processed in the electronic information system, and
- b) the integrity and availability of the electronic information system and its components, including the application of post-quantum encryption for organizations required to use physically separated locations over a government-purpose network, as well as during the use of services provided by a service provider under the electronic communications law or other information society-related services on the public internet, ensuring closed, comprehensive, continuous, and risk-proportionate protection beyond traditional cryptographic applications.

(69) According to Section 6 of the Ibtv., regarding the protection of the electronic information system in accordance with the conditions specified in Section 5, the organization must define logical, physical, and administrative protective measures prescribed by separate legislation that support:

- a) prevention and early warning,
- b) detection,
- c) response,
- d) management of security incidents.

(70) Section 7 of the Ibtv. provides conditions for the classification of electronic information systems into security categories. According to its paragraph, the scope of the Ibtv. extends to the offices of the representative body of local governments.

(71) According to Section 11 (1) of the Ibtv., the head of the organization is obliged to ensure the protection of electronic information systems as follows:

- a) ensures compliance with the requirements specified in the legislation regarding the security category applicable to the electronic information system,
- b) ensures compliance with the requirements specified in the legislation regarding the security level applicable to the organization,
- c) appoints or assigns a person responsible for the security of the electronic information system,
- f) defines rules regarding the responsibilities, tasks, and necessary powers of those responsible for the protection of the organization's electronic information systems, as well as users, and issues the information security policy,
- g) ensures training on the protective tasks and responsibilities of electronic information systems, as

well as the information security knowledge of himself and the organization's employees.

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h) ensures the regular execution of security risk analyses, inspections, and audits to verify that the security of the organization's electronic information systems complies with legal requirements and risks,

i) ensures the traceability of events in the electronic information system,

j) in the event of a security incident, ensures a prompt and effective response to the security incident using all necessary and available resources, and subsequently manages the security incidents,

k) if a contractor is involved in the creation, operation, auditing, maintenance, or repair of the electronic information system, ensures that the provisions of this law are fulfilled as a contractual obligation, *

l) if the organization engages a contractor for data management or data processing activities, ensures that the provisions of this law are fulfilled as a contractual obligation,

m) is responsible for promptly informing the data subjects about security incidents and potential threats,

n) takes any other necessary measures arising for the protection of the electronic information system.

(2) The head of the organization is responsible for the tasks defined in paragraph (1), including those specified in points k) and l), except in cases where a centralized IT and electronic communications service provider, as well as a central data controller and data processor designated by law, must be engaged by the organization.

I.

Findings, Decision

III.1. Legal Conditions for the Application of Public Area Surveillance Systems

(72) According to the interpretative provision of the Kftv., public area refers to any state or municipal property intended for public use, which can be used by anyone in accordance with its purpose, including the part of the public area serving as a road and the part of private property opened and designated for public traffic by the owner (user), as well as that private property which can be used by anyone under the same conditions.

(73) Based on the legal provisions contained in Sections 7-8 of the Kftv., it can be established that there are clear and strict rules regarding who is entitled to perform data processing operations concerning recordings made by public area cameras. The municipal mayor is not considered a person who can lawfully dispose of the recordings. The transmission of the recordings is also legally possible only in a narrow circle and for specific purposes. Audio recording can only be conducted by the acting supervisor – regarding a specific action involving a person, the environment, circumstances, or subject related to the action – thus, a camera placed in a public area or on private property opened to public traffic cannot record sound.

III.2. Identified Illegal Deficiencies in Data Processing Implemented by the Surveillance System

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III.2.1. Quality of Data Controller, Identity of the Data Controller

(74) According to the legal definition of the data controller, the characteristic of the data controller is that the data controller is the entity that independently or jointly with others determines the purpose of data processing, makes and executes decisions regarding data processing (including the tools used), or has these executed by a data processor. A substantive decision is considered to be a decision regarding the legal basis for data processing and the duration of data processing, the determination of the scope of the processed data, the design and execution of the data processing method, decisions regarding access to personal data, decisions regarding data transfer, the use of personal data for other data processing purposes, and decisions regarding the adoption of fundamental data security measures.

(75) Therefore, decisions regarding data processing include, for example, the determination that an organization will carry out data processing for a specific purpose. Similarly, decisions regarding which areas will be monitored by surveillance cameras, what camera system will be used, for how long the data will be processed, who is authorized to access the data, what data security measures will be applied, whether and in what specific activities a data processor will be engaged. A decision regarding data processing also includes the execution of data processing operations themselves (e.g., review, storage, transfer, use, deletion).

(76) Joint data processing does not occur if the data controllers participating in the data processing independently, without regard to the other data controllers, determine the circumstances of data processing and make and execute substantive decisions. Thus, joint data controller status does not arise if the same personal data is used independently by different data controllers for different purposes. Therefore, if multiple data controllers use the same camera system and the same recordings but make substantive decisions separately, they are considered independent data controllers.

(77) Based on the decision of the City Council – 118/2015. (V. 26.) Kt. resolution – a public area surveillance system operates within the administrative territory of the City. The operation of the surveillance system is regulated by the municipal decree 19/2016. (IX. 30.) of the Council and the Customer's Data Protection, Operational and Data Security Regulations for the Public Area Surveillance System.

(78) Based on all of the above, the Authority has undoubtedly established that the System – including the recordings captured by the cameras of MÁV-HÉV Zrt. – is controlled by the Customer. The legal basis for the Customer's data processing is based on the provisions of the Infotv. and the Kftv.; furthermore, the Customer has made substantive decisions regarding the camera images recorded by MÁV-HÉV Zrt., as it is undisputed that it also stores these recordings in its own camera system, reviews them if necessary, and performs data transfers to the Police, based on the authorization of the Kftv., in accordance with its regulations.

III.2.2. Data Published on June 16, 2020, on the Facebook Social Media Page by the Mayor's Profile (1.1. and 1.3.)

(79) The notification that served as the basis for the investigation conducted by the Authority referred to the circumstances of the release of the recording managed by the Customer's public area camera system on June 16, 2020, the manner in which the camera system is managed by the Customer, as well as the manner of informing the individuals affected by the data processing regarding the operation of the cameras – which was contested by the notifier – and the examination of the provisions contained in the relevant data protection regulations.

(80) The publication by the Mayor's profile as recorded in paragraphs (1) and (3) stemmed from a violation of data security and data protection rules, particularly from the seriously unlawful practice acknowledged and reported by the Customer, that "due to established local customs, the public area inspectors accessed the Mayor's recording for the purpose of filing a report, through the designated drive accessible by authorization, for the duration of the recording used for the report." The Customer cited the legitimate interest of the City as the legal basis for this procedure, regarding the illegal dumping of waste.

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The action against damage and the reporting of crimes were indicated. At the same time, in the specific case, it was not the Mayor who filed the report, but the public area inspectors; according to the Client's statement, the Mayor learned about the residential address of the person recorded in the footage as personal data "by hearsay." The saving of the footage was not logged; furthermore, the identification of the license plate of the vehicle appearing in the footage was carried out through "trial and error" in an unjustified manner, unnecessary for filing the report, from a registry accessible by the public area inspectors for a purpose other than the report of illegal waste disposal.

The Client also acknowledged in the investigative procedure preceding the current procedure that the saving of the footage was not logged, thereby violating Section 25/E (3) of the Infotv., as well as the provisions in Section 25/F (1) and (4). This was also supported by the on-site inspection conducted by the Authority within the framework of the current administrative procedure, as the log files saved during that inspection did not contain any data related to the footage. The Client did not fulfill its obligation under Section 23 (2) of the Infotv. (principle of accountability), as it did not substantiate the legal compliance of data processing by explaining its actions based on local customs. The situation revealed regarding the incomplete, inadequate logging of data processing operations during the investigative procedure still existed at the time of the inspection conducted in this procedure and regarding the handling of the footage examined in this procedure, despite the fact that the data controller had already become aware of the deficiency based on the findings of the investigative procedure. Moreover, the data controller stated during the investigative procedure that in the future, the logging of data processing operations related to camera footage would be carried out in the manner specified in the factual part of this decision in the regulation to be prepared by it.

Similarly, on June 16, 2020, in the investigative procedure regarding the footage published by the Mayor's profile on the Facebook social media site, the Client may have been aware based on the findings made by the Authority that the Mayor's access to the footage recorded by the public area camera system was unlawful. Furthermore, the Authority called upon the Client in this procedure to pay special attention to the logging procedure and the establishment of data security measures [(4) paragraph].

III.2.3. Storage of public area camera footage on the Client's server, as well as data processing with recordings that also capture sound (1.1. and 1.2.)

(81) The Client – during the administrative procedure initiated on September 14, 2022 – was unable to prove – (34) paragraph – the specific purpose of processing the footage stored at the path Directory: C:\SHARES\kabinet\Ecsi\Pendrive, recorded by the camera on April 13, 2022, and the three footage streams recorded by the cameras on March 30, 2022, as well as the reason for exceeding the legal storage period defined by the Kftv. (30, in certain cases 60 days) by several months. According to the Client's statement, the internal investigation could not determine the purpose and reason for the

storage of the specified files beyond the legal retention period on another server of the Client outside the closed camera system. The purpose of data processing was later indicated as law enforcement, and the legal basis was specified by the Client as Section 5 (1) a) of the Infotv. The Clerk has no knowledge of the use of the footage.

Based on the above, the Authority established that the Client violated Section 4 (1)-(2) of the Infotv. by processing the four footage streams specified in paragraphs (26) and (34) beyond the legally defined deadline, as personal data may only be processed for a clearly defined, lawful purpose, for the exercise of rights and the fulfillment of obligations. Data processing must comply with the purpose of data processing at all stages, and the collection and processing of data must be fair and lawful; only personal data that is essential for achieving the purpose of data processing may be processed, and personal data may only be processed to the extent and duration necessary for the realization of the purpose. The processing of these recordings – beyond the retention period defined in the Kftv., stored on external storage outside the closed camera system, without a lawful purpose – violated the principle of purpose limitation in data processing, also violating the principle of accountability contained in Section 23 (2) of the Infotv., as it was unable to account for the purpose, by whom, and when the aforementioned footage was extracted from the closed camera system and stored on the other server, meaning it could not substantiate this data processing.

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legality.

(82) Based on the conducted evidentiary procedure – paragraphs (23) and (25) – the assertion made by the Client in paragraph (3) that the recordings of the surveillance system are stored on a closed network, and that the recordings requiring action are stored on a separate drive, with access to the recordings on this separate drive being limited to a narrow circle of individuals, was not confirmed. According to the statement of FLASH-COM Ltd. and the documents it provided, the group of individuals who had access to the folder containing mp4 files of public area camera recordings identified by FLASH-COM, created in 2022, is not limited only to those authorized to access the recordings, as there is a broader group – exceeding the person of the notary and the public area inspector – that had/have the right to access the recordings. In addition to the sole public area inspector, the notary, and the former notary, 10 additional individuals had access to the folder. It can be unequivocally established that the access of the mayor, his assistant [...], a department head, and another employee [...] who was not working as a public area inspector during the examined period, from this group of individuals is unauthorized. The Client also did not prove that the other 6 individuals with access rights were previously public area inspectors and thus their prior access to the recordings would have been lawful. Neither the access of the Mayor nor that of other unauthorized individuals to the recordings complies with the special regulations contained in Sections 7 (3), 7/A (1) and (2), and 8 (1) of the Kfttv., thereby – considering the provisions of Section 5 (a) of the Ibtv. – seriously violating the provisions of Section 25/I (3) (a), (b) and (c) of the Infotv. and those contained in Section 5 (a) of the Ibtv., which also results in a violation of the general data controller tasks stipulated in Section 25/A (1) of the Infotv. The provision of Section 25/A (2) (b) (ba) is also violated, as the processing of personal data was carried out not only for such individuals and to such an extent and duration that is necessary for the purpose of data processing.

(83) The Authority also established that the Client, as an independent data controller – in violation of

the provisions of Section 5 (1) of the Infotv. – processed audio recording data without a legal basis [(17) and (20) paragraphs], as there is no statutory authorization for such data processing under the Kftv. in connection with the public area camera system.

III.2.4 Violation of provisions regarding the maintenance of electronic logs and data security measures (1.1., 1.2. and 1.3.)

(84) The Authority established that the operator room established at the Client's headquarters, as well as the elements of the data processing system located there (workstation and server), lacked the conditions for physical security. At the time of the inspection conducted by the Authority, the electronic security system was not operational. The access control system only logs entries, not exits. In the case of entry with a key, entries and exits are not logged; visitor checks and registrations do not take place.

(85) The Client also stored public area camera recordings on computing devices that did not restrict the connection of external storage devices. In this way, all users with access to the file folder where the recordings were stored (which group of individuals is broader than those authorized to manage the recordings) could access the stored recordings indefinitely and in an uncontrolled manner.

(86) Based on the conducted evidentiary procedure – (9) and (10) paragraphs – it can be established that the same user code and password belonging to the System are known by the public area inspector, the assistant inspector, and the former public area inspector; all of this violates data security.

(87) According to the Client's statement, there is no information on how long the System retains log information, which is overwritten; furthermore, the System is currently not backed up. All of this aligns with the circumstances observed by the Authority, as no log entries regarding backups were found, and this information was only available from the handwritten log (20220914_092739.jpg) and

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The Authority became aware of the information obtained from the backup history window found on the NVR 4.0 user interface (20220914_103109.jpg, 20220914_103122.jpg).

(88) The Infotv. mandates that, for the purpose of verifying the legality of data processing operations carried out electronically with personal data, the data controller must record in an automated data processing system (electronic log) the definition of the scope of personal data affected by the data processing operation, the purpose and justification of the data processing operation, the exact time of the execution of the data processing operation, the identification of the person executing the data processing operation, and, in the case of data transfer, the recipient of the data transfer. The data recorded in the data controller's register and in the electronic log must be retained for ten years following the deletion of the processed data.

(89) The reasons described in paragraph (20) may be as follows according to the IT expert opinion:
1.) In user rights management, different logging rules are set for individual users in the logging settings assigned to users, and previous recordings were exported without an admin user. The system allows for this, as the settings permitted access to the Hik-Connect platform necessary for remote access to the security camera system. During the inspection, the account status was "Disconnected," but the system can still be accessed remotely at any time if the user knows the necessary identifiers for connection.

During the inspection, the Authority also performed the video file extraction with an admin user, and it is recorded in the log (20220914095051logBack log file entry 438292 with a timestamp of 2022-9-14 9:46:54). Thus, the admin's management activities are logged, but user activities are not. The backups created during the inspection are visible in the log file; however, the fact of other backups is only visible on the user interface, not in the log file.

2.) An automatic backup is created of the recordings captured by the camera system, which is not logged by the system.

3.) The log file has been manipulated.

(90) Based on the data obtained during the on-site inspection and the IT expert opinion, the Authority established that, regardless of which of the above cases applies, the Client did not comply with the legal obligation regarding the electronic log, violating the provisions of Infotv. § 25/F (1) and (4). The Client, as the data controller, is obliged to record the data in an automated data processing system (electronic log) for the purpose of verifying the legality of data processing operations carried out electronically, in such a way that it can be determined the scope of personal data affected by the data processing operation (in this case, a specific recording or series of recordings), the purpose and justification of the data processing operation, the exact time of execution, the identification of the person executing the data processing operation, and in the case of data transfer, the recipient of the data transfer. In all cases of recordings examined by the Authority – (3), (21), and (26) – there was no data in the Client's electronic log system that provided information in accordance with the provisions of Infotv. § 25/F (1).

(91) The Authority found that the Client did not have a data controller's register at the time of the inspection, as it could not be presented, and no witness was aware of it. Although the Client had a data protection policy that included several of the data required by Infotv. § 25/E (1), not all data required by this legal provision were included, and a policy cannot be suitable for the registration of those data. The Client thus violated the provisions of Infotv. § 25/E (1) j) and k). The data controller's register must be maintained in written or electronically recorded form and must be made available to the Authority [Infotv. § 25/E (3)]. The Client is responsible for data protection incidents related to the data it processes, as well as for the right of access of the data subjects.

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The Client was unable to present a record containing data regarding measures that restrict or deny the enforcement of this law, or the reason for the absence of such information (no incidents have occurred, the exercise of rights by the data subjects has not been denied).

(92) The Client also did not have a record of users with access to the recordings made by the camera system, which would serve to verify that a user performing a specific data processing operation, according to the electronic log, is indeed a person entitled to access the data, and for what purpose the data controller granted access rights to that specific user. The existence of the appropriate log data would, together with the maintenance of the entitlement register, allow for the verification of the legality of the data processing, making it possible to determine which person performed a specific data processing operation for what specific purpose and on what legal basis.

(93) All these legal violations also infringe the principle of accountability [Infotv. Section 23 (2)]. According to this principle, the data controller – thus the Client – is obliged to prove that the processing of personal data complies with data protection requirements; this must be demonstrated by the data

controller and the data processor.

(94) The above legal provisions are of particular significance in this case, as the established facts indicate that the public space camera recordings recorded and stored by the System were accessed by the person operating the Mayor's Facebook profile, who shared them; furthermore, all this violated points a), b), and c) of Section 25/I (3) of the Infotv. Neither the Client nor the witnesses heard provided any account of how these recordings were leaked. The failure to comply with the statutory guarantees – maintaining an electronic log and a data controller's register – objectively and specifically hindered the Client from complying with the principle of accountability and justifying the specific data processing activities.

(95) According to Section 25/I (1) of the Infotv., the Client was obliged to take technical and organizational measures commensurate with the level of risks posed by the data processing to ensure the enforcement of the fundamental rights of the data subjects. These measures must be designed and implemented considering all circumstances of the data processing, particularly the current state of science and technology, the costs of implementing the measures, the nature, scope, and purposes of the data processing, as well as the variable probability and severity of risks posed by the data processing to the enforcement of the rights of the data subjects. The data controller must ensure the denial of unauthorized access to the tools used for data processing; furthermore, it must prevent unauthorized reading, copying, modification, or removal of data carriers; it must ensure the prevention of unauthorized input of personal data into the data controller's system, as well as unauthorized knowledge, modification, or deletion of personal data stored therein.

The violation of these statutory provisions can also be established based on the facts, considering that unauthorized persons accessed recordings stored on the Client's server, which required action and were stored for unknown purposes; access to the closed camera system was not verified as being granted solely by authorized personnel, as the public space inspector stated that both the assistant inspector and the former public space inspector know the access code, entry and exit to the room housing the camera system was not documented, and the assistant inspector also has a key to it.

(96) It should be noted that the Client operated the System in such a way that the IBF was not aware of its existence, nor was it involved in its establishment process. Furthermore, the Client's system administrator, FLASH-COM Ltd., did not participate in its establishment, nor did they receive any professional inquiries related to the establishment, but rather encountered the System's setup afterwards.

(97) The Client did not fulfill its obligations arising from the lbtv. – (33) paragraph – the statutory
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The Client has conducted its activities in connection with the use of the System in a manner that does not comply with the regulations, which has also led to a violation of the provisions set forth in Section 25/A. (1) and (2) of the Infotv., as well as in Section 25/I. (1).

(98) Based on the fact that the Mayor published a recording containing criminal personal data, originally managed in the System, on the facebook.com social media page on August 15, 2022, it can be established that the Client did not ensure the denial of access to the tools used for data processing by unauthorized persons and did not fulfill its obligation to ensure the unauthorized reading and copying of data carriers. The Client has evidently violated its obligation to prevent unauthorized access to personal data stored in the data processing system.

(99) Based on the above, the Client, as the data controller, did not take appropriate measures to ensure the legality of data processing concerning all circumstances of the data processing, particularly its purpose, as well as the enforcement of the fundamental rights of the data subjects in relation to the risks posed by the data processing. The System serves for data processing for law enforcement purposes under the scope of the Infotv., and the Client has failed to take the necessary technical and organizational measures accordingly [Infotv. Section 25/A. (1) and (2) a) and b)].

III.2.5. Illegal Handling of Data Protection Incident (1.4.)

(100) It can be established from the facts that a data protection incident occurred concerning the recording made on August 15, 2023. It is a fact that the recording was published on the Mayor's facebook page on August 18, 2023. The recording contained personal data – specifically criminal personal data – as its publication aimed at the identification of the person featured in it. Neither the public area inspector nor any of the other witnesses heard during the proceedings were aware of how the recording was released from the Client's management.

(101) The Authority has established that the Client, as the data controller, did not comply with the procedural rules to be followed in the event of a data protection incident, as based on its statements, it was not the public area inspector, as the authorized person for handling the recording, who forwarded the recording to the Mayor, nor did he make it public. Consequently, the recording could have reached the Mayor as a result of some data security breach, through unauthorized access; to the person managing the Facebook page and publishing the recording containing personal data. Despite being aware of this factually ascertainable data protection incident, the Client did not report it to the Authority, nor did it take necessary measures for its investigation, to eliminate its cause, and thus to prevent any potential future incidents, as the Authority revealed on September 14, 2022, the unchanged data processing practice since the occurrence of the incident, which enabled the data protection incident that certainly occurred with the Facebook publication on August 18, 2022. According to the public area inspector's statement, he heard that the Mayor published the recording on Facebook, which he also reported to the Clerk, thus at least two persons within the Client's organization were aware of the incident and could have taken action regarding it.

In this way, the Client violated the data controller obligations set forth in Section 25/J. (1) and Section 25/K. (1) of the Infotv.

III.2.6. Sanctions

(102) In light of the above, the Authority establishes the illegality of the method of data processing carried out within the framework of the surveillance system according to Section 61. (1) b) point ba) of the Infotv. due to the violation of data security and accountability requirements, as well as the violation concerning the reporting and handling of the data protection incident.

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(103)

According to Section 61 (1) paragraph bg) and (4) of the Infotv., in addition to other measures, the Authority may impose a fine ranging from one hundred thousand to twenty million forints.

(104)

The Authority has examined the necessity of imposing a fine. In relation to the Client's unlawful activities, the Authority does not consider it proportional and sufficient to merely establish the fact of

illegality. Taking into account all the circumstances of the case, the Authority has decided that it is necessary to impose a fine on the Client in order to ensure the future protection of personal data. The amount of the fine was determined within the discretionary powers provided by law.

(105)

In determining the amount of the data protection fine, the Authority considered as mitigating circumstances that the purpose of the unlawful data processing was not solely self-serving, but aimed at promoting the public interest and the enforcement of law enforcement interests; furthermore, that the proceedings were prolonged, which can be partly attributed to the Client.

(106)

In determining the data protection fine, the Authority considered as aggravating circumstances that

- the violation stemmed from systemic deficiencies, data security and data protection non-compliances;
- the breach of principles poses a significant risk to the rights of the data subjects, as the four recording streams stored outside the System represented unlawful data processing without a legitimate purpose; through the general violation of the principle of accountability, the path of personal data processing and the process of data processing became untraceable over a long period and involving numerous data subjects, which excludes the verifiability of the legality of individual data processing operations;
- the data processing in violation of data security and data protection regulations has existed for a longer time – dating back to 2020;
- the Client was already aware during the investigation of the necessity of proper logging of the data processing operations, yet during the time that has elapsed since then, they did not ensure proper logging of the recordings processed or the traceability of their handling;
- the risk posed to data subjects is significant in the case of criminal personal data;
- the nature and severity of the violation affects a large number of individuals, as the infringement has existed since 2020 and a large number of data subjects can become identifiable in each recording, and in the case of cameras recording sound, their conversations may also become audible;
- the Authority had already established, on October 4, 2019, with its decision NAIH/2019/2076/11, a violation related to the handling of images as personal data and security cameras, imposing a data protection fine of five million forints against the Data Controller.

(107)

According to the Client's revenue total in its 2022 report, rounded to 3.125 billion HUF, the imposed fine does not represent an unmanageable obligation; however, it is expected to be suitable for encouraging the Client to demonstrate compliant behavior regarding data protection and data security in the future.

(108)

Based on the above, the Authority deemed it proportionate and deterrent, considering all the circumstances of the case, to impose a data protection fine amounting to forty percent of the maximum amount that can be imposed.

(109)

The Authority, based on Section 61 (2) points a) and b) of the Infotv., also ordered the publication of the decision with the Client's identification data, as the violation affects a wide range of individuals and was related to the activities of a public authority.

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IV. Exceeding the Administrative Deadline

(110)

The Authority exceeded the administrative deadline as stipulated in Section 60/A (1) of the Infotv. during the procedure.

V. Other Questions

(111)

According to Section 38 (2) of the Infotv., it is the Authority's duty to monitor and facilitate the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly available data. The Authority's jurisdiction extends across the entire territory of the country.

(112)

The Authority's decision becomes final upon communication, as per Section 82 (1) of the Ákr.

(113)

Based on Section 112 and Section 116 (1), as well as Section 114 (1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

(114)

The rules of administrative litigation are determined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and according to Section 13 (3) a) aa) of the Kp., the Metropolitan Court is exclusively competent for the case.

(115)

According to Section 72 of Act CXXX of 2016 on Civil Procedure (hereinafter: Pp.) – applicable based on Section 26 (1) of the Kp. – legal representation is mandatory in cases falling under the jurisdiction of the court, as per Section 27 (1) b) of the Kp. According to Section 39 (6) of the Kp., unless otherwise provided by law, the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(116)

According to Section 29 (1) of the Kp. and in consideration of Section 604 of the Pp., pursuant to Section 9 (1) b) of Act CCXXII of 2015 on the General Rules of Electronic Administration and Trust Services, the client's legal representative is obliged to maintain electronic communication. The time and place for submitting the statement of claim are determined by Section 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77 (1)-(2) of the Kp.

(117)

The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The initiating party is exempt from the prior payment of the fee as per Section 59 (1) and Section 62 (1) h) of the Itv.

Dated: Budapest, according to the electronic signature

Dr. habil Péterfalvi Attila

President

Professor Emeritus